CONSTITUTION

The Guild of Students

The University of the West Indies
Cave Hill Campus

Together We Can Make It Happen!

Reformed 2018

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INTRODUCTION

This amendment of *The Constitution of the Guild of Students, University of the West Indies, Cave Hill Campus* was embarked upon by the Guild of Students 2017/2018 in an effort to align the document with modern practice clearly and precisely. Equally, the *Constitution of the Guild of Students* has been standardized with the Constitutions of the Guilds of Students at the St. Augustine, Mona and Open campuses to realize the "One UWI" objective.

A Preamble and a Bill of Rights were inserted to capture the spirit of our student governance and to reaffirm the rights and obligation of the students.

Importantly, councilor portfolios, committee structures and procedures were harmonized to accurately exemplify the modern practices and renewed visions of the UWI Guild of Students at Cave Hill.

Additionally, provisions were updated to further promote transparency of the Guild Council.

The annexation of the 'Election Regulations' gives way for binding effect of the document and standardizes the conduct of elections. Similarly, the Inter-Campus Guild Council Rules and Regulations is annexed to capture the responsibilities of Councilors' at the inter-campus level.

Lastly, general grammatical and referral errors were corrected throughout the entire document.

It is our hope that this new Constitution serves as the best guide for all.

Yours in Service,

Lloyd Robinson Jr.

Law Representative

Constitutional Chairperson

2017/2018

STUDENTS
VANGUARD

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PREAMBLE

Whereas historically The University of the West Indies has nurtured individuals to assume leadership in their communities, it is necessary in these rapidly changing times for this tradition to be reaffirmed.

Whereas, the Guild of Students aims to create a vibrant campus community by:

i. Advocating for the needs and interests of undergraduate and graduate students;
ii. Developing and implementing both innovative and traditional programs and;
iii. Allocating the student fee to unique and engaging activities, programs and initiatives.

The Guild of Students undertakes to guarantee the rights enshrined below in this Constitution, dubbed the "Bill of Rights."

BILL OF RIGHTS

The Guild of Students undertakes to guarantee the rights enshrined below in the "Bill of Rights" which are deemed to be sacrosanct.

Right to Information

1. Every Student shall be able to attend all open meetings of the Guild.
2. Upon request, every Student shall be entitled to view copies of documents prepared by the Guild Council documents within then (10) business days, which shall include but not be limited to:
    a) Financial Report presented at Annual General Meetings.
    b) Papers prepared for Inter-Campus Guild Council and other academic meetings
    c) The Guild Constitution and all appendices.

Right to Vote

Subject to the validity of a students' registration status, all students have a right to vote for Councilors of the Guild of Students (subject to where such Councilors are deemed to be appointed by the Guild Council) provided that adequate identification is furnished.

Freedom of Speech

1. No Councilor of the Guild of Students of the University of the West Indies shall hinder nor restrict any student's freedom of speech on University Policy and Protocol.
2. However, speech that is deemed to be defamatory, promote xenophobic sentiment, hate and discrimination of another student by virtue of (but not limited to) race, nationality, sex, class or creed will not however be tolerated, nor should such be promoted by any Councilor of the Guild of Students.

Freedom of Assembly

Students have a right to assemble to discuss issues of importance to them and to attend meetings with some or all Guild Councilors to express said issues. The latter may be done informally or through the channels (but is not limited to) prescribed by this Constitution. These meetings may take

the form of an Annual General Meetings of the Guild of Students or a Special Meetings of the Guild of Students.

Freedom of Religion

Students have a right to participate in Guild sponsored activities that are neutral toward religion and do not manifest a preference for one religion as opposed to another.

Protection against Improper Academic Evaluation

Students have a right against biased, improper evaluation by faculty and staff that is not in keeping with the standards established in particular courses of study. To that end, Student Representatives have a duty to represent student interests where such is alleged.

Right of Confidentiality

Information concerning inter alia a student's personal beliefs, sexual orientation and political affiliation acquired by an Officer of the Guild of Students during their course of academic study shall be considered confidential and may be disclosed only with the prior consent of the student.

Redress

An alleged contravention of this section, and others of this constitution by an Councilor of the Guild of Students shall be subject to disciplinary procedures outlined in section 10-12 of this Constitution. This does not preclude the pursuing of other means of redress.

CONSTITUTION OF

GUILD OF STUDENTS
UNIVERSITY OF THE WEST INDIES

INTERPRETATION

1. (1). In this Constitution and in all Bye-laws and rules made under it the following words and expressions shall have these meanings assigned to them:

"Council" mean Council of the University of the West Indies.

"Senate" means the Senate of the University of the West Indies.

"Campus Council" means Campus Council Cave Hill.

"Guild" means the Guild of Students established under ***Article 2.***

"Guild Council" means the Committee of the Guild of Students established under ***Article 20.***

"Bye-laws" means the Bye-laws of the Guild for the time being in force.

"Absolute majority" means three quarters of those present and voting.

"Simple majority" means a majority for, over votes against, abstentions notwithstanding.

(2). Reference to this Constitution shall include all Bye-laws and rules made under powers conferred by this Constitution.

(3). The Guild Council shall be the authority for the interpretation of this Constitution and its ruling shall be subject only to appeal to the Council.

ESTABLISHMENT OF THE GUILD

2. (1). . In pursuance of ***Statute 38 and Ordinance No. 1*** of the University's Charter there shall be an association of the Students of the University of the West Indies, Cave Hill which shall be called the Guild of Students.

(2). In accordance with the provisions of ***Ordinance No. 1,*** the Guild Council shall be the recognised means of communication between the undergraduate students as a body and the authorities of the University.

AUTHORITY FOR CONSTITUTION

3. (1). For the avoidance of all doubt, this Constitution derives its validity from ***Statute 38 (2) and Ordinance No. 1*** of the Charter of the University.

(2). The Guild is hereby authorised to make rules for its internal management and administration, the election of its officers, the alteration of its rule and all other matters requiring regulation, but no rule shall be effective until it has been approved by the Council on the recommendation of the Senate.

OBJECTIVES

4. Every Guild Council shall hold the following as its main objectives:

i. Representation of the needs and interests of all students;
ii. The furtherance of the educational, moral and social development of the students of the University of the West Indies;
iii. The promotion of unity and fraternity among members of the Guild.

These objectives shall be pursued by the following means:

i. The development and implementation of both innovative and effective programs and activities; and
ii. The allocation of the Guild budget to fund these various student programs and activities.

Outside of these overall objectives of the Guild Council, the incumbent Guild may decide upon additional objectives and mandates for their tenure. Furthermore, each Guild Council is also encouraged to promulgate a Mission Statement which shall guide them throughout their tenure.

MEMBERSHIP

5. Members of the Guild shall be divided into the following classes:

a. Full Members
b. Associate Members, and
c. Honorary Life Members

FULL MEMBERS

6. (1). All matriculated students of the University of the West Indies shall be Full Members of the Guild and shall remain members for so long they are actually following a course of study approved by the Senate notwithstanding that they may have become members of the Guild of Graduates.

(2). Full Members of the Guild shall have the following rights.

(a) The right to frequent the Union and to enjoy all its facilities and amenities.

(b) The right to vote at all Guild Elections and to stand for election for any office in the Guild except when debarred by lack of any special qualification.

(c) The right to wear the official University colours.

(d) The right to frequent the games fields and enjoy all the facilities and amenities offered.

(e) The right to participate in all activities sponsored by the Guild, and

(f) Such other rights as may be conferred by this Constitution from time to time.

ASSOCIATE AND HONORARY LIFE MEMBERS

7. (1). Subject to ***Article 9***, the following shall be eligible to apply for Associate Membership.

(a) Any un-matriculated student who has paid the membership fees and is actually following a course of study approved by the Senate. Membership shall be on such terms as the rules thereof shall prescribe.

(b) Any person or member of an organisation deemed by the Guild Council as having fraternal ties with the Guild.

(c) All Guild employees whether they are registered as permanent or casual members, and

(d) All members of the Council, Campus Council, Academic and Senior Administrative Staff and Non-Academic Staff.

(2). Associate Membership shall, except in the case of the Guild Workers, extend for a fixed period which shall be at the discretion of the Guild.

8. Subject to ***Article 9*****,** the Guild may from time to time, on the recommendation of the Guild Council, by simple majority vote, elect persons to be Honorary Life Members of the Guild in recognition of services rendered by such person to the University or to the Caribbean Community.

9. Associate and Honorary Life Members shall have the right to frequent the Union and to enjoy to amenities and facilities provided by the Guild.

HONORARY LIFE MEMBERS

10. The Guild may from time to time, on the recommendation of the Guild Council, by simple majority vote, elect persons to be Honorary Life Members of the Guild in recognition of services rendered by such persons to the University or to the Caribbean Community.

RIGHTS AND PRIVILEGES OF ASSOCIATE AND HONORARY LIFE MEMBERS

11. (1) Associate and Honorary Life Members shall have the privilege to enjoy to the amenities and facilities provided by the Guild.

(2) Associate and Honorary Life Members shall not have the right to vote in any Meetings or elections or to stand for any positions of the Guild.

DISCIPLINARY ACTIONS AGAINST MEMBERS

12. (1) The Guild Council on the recommendation of the Constitution Committee shall have the power to suspend for good cause or misconduct any Full, Associate or Honorary Life Member of the Guild.

(2) Misconduct means:

(a) Unauthorized removal of Guild property and/or assets;

(b)Misappropriation of Guild funds;

(c) Theft of Guild Property and/or assets; or

(d)Any other action or activity not listed above but deemed inappropriate by an absolute majority of the Guild Council.

(3) A member may be suspended for a period not exceeding three months, and in addition to suspension, shall lose all or any of the following rights, at the discretion of the Guild Council:-

(a) The use of any of the University's playing fields;

(b) The right to be a playing member of any Club under the control of the Games Committee;

(c) The right to participate in activities of any Club or Society under the control of the Inter-Clubs Committee; or

(d) The right to hold office under the Guild or to be a member of the Guild Council or any Committee thereof.

(4) Prior to suspension, the Guild Council shall forward a written report, stating the grounds for the proposed suspension, to the Chairman of the Constitution Committee and to the member whose suspension is being considered.

(5) On receipt of a written report from the Guild Council, the Chairman of the Constitution Committee shall cause lots drawn from among the members of the Committee to select a sub-committee of three persons to investigate the report.

(6) The sub-committee shall elect its Chairman and determine its own procedure, but shall in any event provide an opportunity for the member whose suspension is being considered, to present their case, with the assistance of another Guild member, if requested, and in keeping with Rule of Law. Such presentation may be oral or written.

(7) The decision of the sub-committee shall be in writing, addressed to the Guild Council, and stating the grounds for recommending the enforcement or non-enforcement of the suspension.

(8) The decision of the sub-committee, in the event of a disagreement shall be by majority vote. A dissenting member shall be entitled to submit their reason for dissent.

(9) Copies of the decision of the sub-committee and of any dissent shall be given to the member whose suspension is being considered by the Guild Council or sent by registered post to their last known address.

(10) A decision of the sub-committee to not enforce a proposed suspension shall be final.

(11) If the sub-committee recommends the enforcement of a suspension, the suspended member may appeal to a meeting of the Guild Council by providing the Secretary with a written notice of appeal within seven (7) working days of the receipt of the decision of the sub-committee.

(12) The Guild Council shall on receipt of a notice of appeal from a suspended member, summon a Special General Meeting of the Guild, within two (2) weeks for the determination of the appeal.

(13) The suspended member shall be entitled to attend, circulate written material and speak at the Special General Meeting on their case, but shall not be entitled to vote.

(14) The Decision whether to affirm or reverse the suspension shall be by a simple majority vote of the membership of the Guild and those eligible to vote. Such a decision shall be final.

SUSPENSION OF MEMBERS

13. (1). The Guild Council on the advice of the Constitution Committee, have the power to suspend for good cause any Full or Associate Member of the Guild.

(2). A member may be suspended for a period not exceeding three months, and in addition to suspension shall lose all or any of the following rights at the discretion of the Guild Council:-

(a) The use of the Union and/or the University's playing fields.

(b) The right to be a playing member of any Club under the control of the Games Committee.

(c) The right to participate in activities of any Club or Society under the control of the Inter-Clubs Committee.

(d) The right to hold office under the Guild or to be a member of the Guild Council or any Committee thereof.

(3). Prior to a suspension, the Guild Council shall forward a written report stating the grounds for the proposed suspension to the Chairman of the Constitution Committee and to the member whose suspension is being considered.

(4). On receipt of a written report from the Guild Council, the Chairman of the Constitution Committee shall cause lots to be drawn to select a sub-committee of three to investigate the report.

(5). The sub-committee shall elect its Chairman and determine its own procedure, but shall in any event provide an opportunity for the suspended member to present his or her case before them with the assistance of another Guild member, if requested. Such presentation may be oral or written.

(6). The decision of the sub-committee, in the event of a disagreement shall be by majority vote.

(7). The decision of the sub-committee shall be in writing, addressed to the Guild Council, and stating the grounds for recommending the enforcement or non-enforcement of the suspension.

(8). A dissenting member shall be entitled to submit his/her reason for dissent.

(9). Copies of the decision of the sub-committee and of any dissents shall be given to the member by the Guild Council or sent by registered post to his/her last known address.

(10). A decision of the sub-committee that a proposed suspension not be enforced shall be final.

(11). If the sub-committee recommends the enforcement of a suspension, the member may appeal to a meeting of the Guild by leaving with the **Secretary of the Guild** a written notice of appeal within **seven (7) days** of the receipt of the decision of the sub-committee from the Guild Council.

(12). The Guild Council shall on receipt of a notice of appeal from a suspended member, summon under ***Article 27*** **a Special General Meeting of the Guild** within **two (2) weeks** of the receipt of the notice of appeal for the purpose of the determination of the appeal.

(13). The suspended member shall be entitled to attend, circulate written material on his/her case and speak at the Special General Meeting but shall not be entitled to vote.

(14). The Decision whether to confirm or discontinue the suspension shall be by a simple majority vote of the members of the Guild present, and such decision shall be final.

MEMBERSHIP FEES

14. The membership fees for members of the Guild shall be as follows:

(a) For Full Members an annual sum determined from time to time by the Campus Council, after consultation with the Guild Council.

(b) For Associate Members on half of the sum determined under ***Article 11*** (a).

(c) For Honorary Life Members no fees.

GUILD PROPERTY

15. (1). All the property of the Guild (other than cash in hand and cash at the bank) shall be vested in the University of the West Indies, Cave Hill, upon trust for the Guild.

(2). The property of the Guild shall be controlled, managed and secure by the Guild Council, and shall be used for the furtherance of the objects of the Guild as defines in ***Article 4*** of this Constitution.

(3). In no circumstances shall the property of the Guild nor any part thereof be distributed among members of the Guild or appropriated by any of them.

(4). All the property of the Guild shall be handed over by the outgoing Guild Council to the incoming Guild Council by **April 1** of each year.

(5). The Union, the Inter-club and Games Committees shall before the end of the year of office and not later than **March 1**, submit to the Guild Secretary copies of a complete inventory for each recognised Club or Society.

ESTABLISHMENT OF THE GUILD COUNCIL

(20) The government, control and administration of the Guild (except as has been otherwise provided by this Constitution) shall be entrusted to a Committee which shall be known as the Guild Council.

(21) The Guild Council shall promote, foster and develop the educational, social, cultural and economic interests of Guild members and represent such interests in the University community and on the national and international level.

POWERS OF THE GUILD COUNCIL

16. Without prejudice to the generality of the foregoing, the Guild Council shall have the following powers:

(a) To set up Standing, Special or Advisory Committees, and these Committees shall be under the control of and make reports to the Guild Council.

(b) To give approval to the Constitution, Rules and Bye-laws of any Society in the University of the West Indies, Cave Hill which may apply from time to time for recognition by the Guild.

(c) To make Bye-laws as hereafter provided.

(d) To make, vary and terminate contracts for and on behalf of the Guild, and

(e) Such other powers not herein specifically conferred, and as are necessary for the good performance of the objects of the Guild and are not conferred by this Constitution on any other body.

OFFICERS OF THE GUILD

17. The Officers of the Guild shall be:

1. The President
2. The Vice-President (with responsibility for Inter-Clubs Committee)
3. The Guild Secretary
4. The Guild Treasurer
5. The Union Committee Chairperson
6. The Games Committee Chairperson
7. The Publications Committee Chairperson
8. The International Affairs Committee Chairperson
9. The National Affairs Committee Chairperson
10. The Faculty Representatives
11. The Post-Graduate Representative
12. The Hall Representatives
13. The Part-Time Representative
14. The Returning Officer
15. The Librarian
16. The Public Relations Officer
17. The Events Officer
18. Any other officers as shall be deemed necessary by the Guild, from time to time.

18. The President:

1. Shall be the Chairperson of the Guild Council and the Guild of Students.
2. Shall be the chief executive officer of the Guild of Students.
3. Shall see to the welfare of all workers.
4. Shall see to the efficient running of the Guild Council and the Guild of Students.
5. Shall be the ex-officio member of all Standing Committees.
6. Shall perform any other functions that are assigned to him/her from time to time by this Constitution and its Bye-Laws.

19. The Vice-President

1. Shall be Deputy Chairperson of the Guild Council and the Guild of Students.
2. Shall, in the absence of the President, chair meetings of the Guild Council and Guild of Students.
3. Shall, as Chairperson of the Inter-Clubs Committee, chair meetings of the Inter-clubs Committee and in such function shall see to the competent and efficient managing of the affairs and general co-ordination of the Inter-Clubs Committee.

4. Shall be an ex-officio member of all Clubs and Societies that are registered according to the requirements of this Constitution and its Bye-laws.
5. Shall attend the Annual General Meetings of all Clubs.
6. Shall perform any other functions that are assigned to him/her from time by this Constitution and its Bye-laws.

20. The Guild Secretary:

1. Shall be responsible for recording and making notes of such minutes, resolutions and motions as are passed by the Guild Council and Guild of Students;
2. Shall ensure the proper maintenance of files and other records and the timely dissemination of information within the Guild Council, including but not limited to, copies of minutes and reports of events, such that they may be made available to any member of the Guild Council upon reasonable request.
3. Shall prepare summaries of all reports from the Guild Council and present these at General Meetings, as well as have these posted in prominent locations.
4. Shall perform any other functions that are assigned to him/ her from time to time by this constitution and its Bye-laws.

21. The Guild Treasurer:

1. Shall be the Chairperson of the Finance Committee.
2. Shall ensure that accounting policies and procedures of the Guild of Students are in accordance with the accounting standards procedures and practices of the University.
3. Shall be responsible for preparing control accounts for the Guild of Students.
4. Shall see to the preparation of Estimates of Income and Expenditure and Final Accounts, subject to the review by the Guild Council.
5. Shall be responsible for the collection of all monies at all fund-raising activities of the Guild of Students.
6. Along with the Finance Committee, shall be held responsible if there are any misappropriation of funds or if there is evidence of any financial negligence or impropriety.
7. Shall authorise the disbursement of all monies as approved by the Guild Council.

8. Shall perform any other function that may be assigned under the Constitution or the Bye-laws

22. Postgraduate Representative

1. Shall represent the interests of the Postgraduate students to the Guild Council, the respective Faculty Boards and at relevant University meetings.
2. Shall promote maximum participation of Postgraduate students in addition to other activities that advance the curricular and extra-curricular interests of postgraduate students at the Cave Hill Campus.
3. The tenure of the Postgraduate representative shall last for a year as customary as any other Guild Council and must thereafter run for reelection if he/she so chooses.
4. Shall perform any other functions that are assigned to them from time to time by the Guild Council, this Constitution or the Bye-Laws.

22. The Union Committee Chairperson:

1. Shall be the Chairperson of the Union Committee.
2. Shall ensure that the physical facilities of the Union are kept in adequate condition for all members and guests of the Guild of Students.
3. Shall perform any other function that may be assigned under the Constitution or Bye-laws.

23. The Games Committee Chairperson:

1. Shall be the Chairperson of the Games Committee.
2. Shall seek to promote and develop sporting activities within the University community as well as the sporting relations of the University with the wider community, at national, regional and international level.
3. Shall be the main liaison officer between the Guild and the University Sports Department.
4. Shall be responsible for planning, coordinating, organizing and overseeing all sporting and gaming events and activities of the Guild of Students.
5. Shall ensure the adequate allocation and supervision of resources, equipment and related materials for the official activities of the sport and game club and societies.
6. Shall perform any other function that may be assigned under the Constitution or the Bye-laws.

24. The Publications Committee Chairperson:

1. Shall be the Chairperson of the Publications Committee.
2. Shall be responsible for the production and distribution of all publications of the Guild Council.
3. Shall perform any other function that may be assigned under the Constitution or Bye-laws.

25. The International Affairs Committee Chairperson:

1. Shall be the chairperson of the International Affairs Committee.
2. Shall represent the interest of the Guild of Students at all international for activities.
3. Except where specified by the Guild Council, shall submit all papers to be delivered on behalf of the Guild of Students for approval by the Guild Council.
4. Shall be responsible for presenting at least one annual symposium on a current international issue.
5. Shall be liaison officer between the other guilds of the University of the West Indies on all international issues.
6. Shall perform any other function that may be assigned under the Constitution or the Bye-laws.

26. The National Affairs Committee Chairperson:

1. Shall be the Chairperson of the National Affairs Committee

2. Shall promote, foster and develop, the cultural educational and social links with the general public.
3. Shall represent the interest of the Guild at all national fora.
4. Shall perform any other function that may be assigned under the Constitution or the Bye-laws.

27. Faculty Representatives

1. Shall be the President of their respective Faculty societies.
2. Shall represent the interests of the students of the respective Faculties to the Guild and at the respective Faculty Boards.
3. Shall be the official liaison between the Faculty Administration, the Faculty Board and the student in the Faculty.
4. Shall promote maximum participation of members of the Faculty in activities organized by the Guild Council, in addition to other activities that advance the curricular and extra-curricular interests of students in the Faculty.
5. Shall perform any other functions that are assigned to them from time to time by the Guild Council, this Constitution or the Bye-Laws.

28. Hall Representative

1. Shall chair the meetings of their respective Hall Committees.
2. Shall represent the interests of the residents and affiliated members of the respective Halls of Residence to the Guild Council and the relevant University departments.
3. Shall promote maximum participation of residents and affiliated members of the respective Halls in activities organized by the Guild Council.
4. Shall promote cultural, political, economic and social interaction on the respective Halls of Residence in order to enhance the quality of life on the Halls.
5. Shall relay all directives and relevant information from the Guild and Guild Council to students in the respective Halls of Residence.
6. Shall perform any other functions that are assigned to them from time to time by the Guild Council, this Constitution or the Bye-Laws.

30. The Part-time Representative

1. Shall be the Chairperson of the Part-time Students' Committee.
2. Shall represent the interests of the Part-time students to the Guild Council, and work in conjunction with the respective Faculty Representatives to ensure that the interests of Part-time students are articulated at the respective Faculty Boards.
3. Shall be a member of the Guild provided that they are registered as a Part-time for the Academic year in which they are elected
4. Shall perform any other functions that are assigned to them from time by the Guild Council, this Constitution or the Bye-Laws.

31. The Public Relations Officer:

1. Shall be the Chairperson of the Public Relations Committee.
2. Shall, with the approval of the Guild President, be the spokesperson for the Guild of Students.

3. Shall be responsible for the construction and posting of flyers, notices and all information paraphernalia that is geared at transmitting information from the Guild Council to the Guild of Students.
4. Shall seek to ensure special broadcasting facilities in national media. This includes publicizing by the utilization of the electronic media namely television, radio, cellphones and internet, the print media namely television, radio, cellphones and international newspapers, magazines, and newsletters. The official Guild Publications, University Campus Publications, any other form of publications, local and overseas, and all other ways and means by which the Public Relations of the Guild of Students would be carried out effectively.
5. Shall be a standing member of the National Affairs Committee, International Affairs Committee, Publications Committee and Union Committee.
6. Shall perform any other function that may be assigned under the Constitution or the Bye-laws.

32. **THE EVENTS OFFICER**

1. Shall be the chairperson of the Events Committee.
2. Shall be responsible for spearheading the execution of Guild Events and Special Projects and Initiatives.
3. Shall serve as the contact person for all associations, clubs and societies planning events on campus.
4. Shall liaise with all associations, clubs and societies to have the receipt of their licenses and permits facilitated.
5. Attend all Student Activity meetings with the Office of Student Services.
6. Shall spearhead at least two (2) campus wide outreach initiatives on behalf of the Guild each semester.
7. Shall perform any other function that may be assigned under the Constitution or the Bye-laws.

ELECTION AND APPOINTMENT OF GUILD OFFICERS

32. (1) The President, Vice-President, Guild Secretary, Guild Treasurer, Union Committee Chairperson, Games Committee Chairperson, International Affairs Committee Chairperson, the National Affairs Committee Chairperson, the Faculty Representatives, the Hall Representatives and the Public Relations Officer shall be elected by secret ballot. Only Full Members of the Guild as defined by ***Article 6 (1)*** shall be eligible for nomination.

(2) All members of the Guild Council shall be elected between **March 1** and **March 15** each year. The dates of the election, is to be decided by the Guild Council.

(3) The Guild Council shall, at its first meeting, appoint the following officers:

1. Events Officer
2. The Returning Officer
3. The Librarian, and

4. The Publication Committee Chairperson

(4) (a) The workers of the Guild shall also elect a representative from among their ranks to sit on the Guild Council. The election of such representative shall be between **March 1 and March 15** each year.

(b) For the purpose of representing the interests of Guild workers, the worker representative shall, in those matters only, have the right to attend and vote at Guild Council Meetings only when matters concerning the interest of the workers are being discussed.

(c) 'Worker interests' shall include all matters concerning the employment of Guild workers by the Guild matters related to workers' participation in decision-making in the University and any other related matter(s).

VACANCIES

33. (1) Should the office of the President become vacant, a new President shall forthwith be elected by ballot of the whole from among the members of the Guild unless the vacancy shall occur after **December 31** of any year in which case the Guild Council shall decide whether an election be held or whether the Vice President shall perform the duties of the President until the end of his term of office.

(2) Should the office of Vice-President become vacant, a new Vice president members shall forthwith elected by ballot of the whole from among the members of the Guild unless the vacancy shall occur after **December 31** in any year, in which case the Guild Council shall decide whether an election be held or whether the functions of the Vice-President shall be performed by the President or his nominee from among the members of the Guild Council.

(3) Should a vacancy exist in any office of the Guild, the office shall be filled by the Guild at a Bye-election except in the case of officers mentioned in ***Article 21. (3) (b) & (c)*** who shall be appointed by the Guild Council from among the members of the Guild.

(4) No act or resolution of the Guild Council shall be invalid by reason only of any vacancy in the Guild Council.

(5) Any elective position on the Guild Council not filled within the prescribed time shall be considered by the Guild Council which, in its discretion, may do one of the following:

1. extend the prescribed time; or
2. appoint a member of the Guild to fill the position.

(6) Any members of the Guild Council other than its Officers under ***Article 21 (1)*** shall cease to be members of the Guild Council upon ceasing to be members of the body which elected or appointed them.

(7) Any member of the Guild Council who shall cease to be a Full Member of the Guild shall automatically cease to be a member of the Guild Council.

(8) Any member, of the Guild Council who shall have been absent from three consecutive meetings of the Guild Council or a total of four meetings, shall be considered to have resigned unless reasons for such absence have been given which the Guild Council considers appropriate.

(9) Any member of the Guild Council may resign by giving notice in writing to the Guild Secretary and the resignation shall be effective not less than **seven (7) days** after its receipt.

TENURE OF OFFICE

34. (1) Subject to ***Article 35*** all elected members of the Guild Council shall hold office from **June 1st to May 31st** of the succeeding year.

(2) Any member who is elected by virtue of ***Article 22*** shall vacate his/her position at the end of the tenure of office of the Guild Council of which he/ she is a member.

(3) No person shall hold office on the Guild Council for more than two (2) consecutive terms for any positions.

THE GUILD OFFICIAL HANDING OVER CEREMONY

35. (1) The Guild Official Handing Over shall take place between the conclusion of elections and the commencement of the examination period of the second semester.

THE GUILD COUNCIL TRANSITION PERIOD

36. (1) The Guild Council Transition Period shall be between the days immediately after the Guild elections to **May 31st.** This period should be a period when the incoming Guild Council shall prepare for official assumption of office on **June 1st.** The outgoing Guild Council is required to guide the incoming Guild Council as it relates to all the business and operations of the Guild Council for the last year. The old guild will remain official signatories no later than **May 31st.**

The outgoing will remain the legitimate office holders until June 1st.

MEETINGS OF GUILD COUNCIL

37. The Guild Council shall meet at least **four (4) times** per semester such semester periods being defined in the University Calendar.

1. Officers of the Guild who are not members of the Guild Council constituted by ***Article 20*** may attend meetings of the Guild Council invited by the President.
2. Meetings of the Guild Council shall be chaired by the President or by the Vice-President in the absence of the President or in the absence of both, by any member of the Guild Council elected by a simple majority of its members.
3. Ordinary meetings of the Guild Council may be called by the authority of the President. At least three (3) days' notice shall be given to every member of the Guild Council.
4. Emergency meetings of the Guild Council may be called by the President or by the Vice President in the absence of the President. At least twenty-four (24) hours' notice shall be given to every member of the Guild Council of such meetings.
5. Notwithstanding the ***Article 26 (2)*** above, upon the submission of a petition signed by an absolute majority of the Guild Council to the Secretary of the Guild, an emergency meeting may be called and chaired by a member of the Guild Council.
6. One half plus one of the members of the Guild Council shall constitute a quorum.
7. At the first meeting of a newly elected Guild Council, it shall make such appointments and perform such duties as provided for in this Constitution.

PROCEDURES FOR MEETINGS OF THE GUILD COUNCIL

38. Meetings will be conducted as follows:

1. The Agenda shall usually include the Minutes of the last meeting and matter arising from then.
2. At each meeting of the Guild Council, the members present shall sign their names in the Register.
3. The Guild Council shall have the power to permit non-member of the Guild Council to attend any of it meetings. Such permission shall not confer the right to vote nor shall it confer the right to speak except on the invitation of the Chairperson.
4. The Guild Secretary shall read the Minutes of the previous meeting unless the meeting decides that the Minutes be taken as read. Before confirmation of the Minutes, no motion or discussion shall be allowed on the Minutes except in regard to their accuracy. After the Minutes have been confirmed and signed by the Chairperson, matters arising from the Minutes may be discussed.
5. A member shall always address himself to the Chairperson. When the Chairperson begins to speak any member then speaking must cease.
6. If the Chairperson calls a member to order, the member speaking shall cease and no other member shall speak until the Chairperson gives his permission for debate to continue. The ruling of the Chairperson on points of order or explanation shall be final.

7. If a member refuses to obey the Chairperson's call to order, they shall be required to exit the meeting and shall not be allowed to re-enter until an apology satisfactory to the meeting be given.
8. In the event of the Guild Council considering that the circumstances of the meeting demand that a member shall remain in the meeting, it shall have the power, by an absolute majority to direct the member to remain.
9. If grave disorder arises, the Chairperson acting on their discretion can declare the meeting adjourned and quit the chair, and by that declaration the meeting is immediately adjourned, and no business may be subsequently transacted.
10. Members wishing to raise points of order or information must first get the permission of the Chairperson. A member shall give way to another on a point of order, but shall not be bound to give way on a point of information.
11. The first proposition on any subject shall be known as the Original Motion. All succeeding propositions on that subject shall be known as amendments. Any motion or amendment shall be moved and seconded by members present at the meeting before they can be discussed and wherever possible shall be done in writing. It is permissible for a member to first and then conclude with a motion. When an amendment is moved to an Original Motion no further amendment has been disposed of, however, when an amendment is placed before the meeting it shall be permissible for a member to propose an amendment to such amendment.
12. If an amendment is being carried, the motion as amended displaces the Original Motion and becomes the Substantive Motion. Any further amendment relating to the Substantive Motion may be moved provided it is consistent with the business and has not been covered by an amendment or motion previously rejected. After the vote on such succeeding amendment has been taken, the surviving propositions shall be put to the vote as the main question, and if carried shall become a resolution of the meeting. The proposer of the motion or amendment being carried, its proposer becomes the proposer of the Substantive Motion and may reply before that is put. In every case, the question shall be put to the meeting for the vote directly after the right of reply has been exercised.
13. A motion on the table may be withdrawn by the proposer, but it shall then be open to the seconder or any other member to propose the same motion, providing this is done immediately after such withdrawal.
14. At any time after a question has been proposed from the Chairperson, any member may move "That the question be now put." On this motion being seconded, the Chairperson, unless they consider that it is an infringement of the right of reasonable debate, forthwith, and without permitting discussion shall put the question "**That the question be not put."** If this question be carried the Chairperson shall then call upon the proposer to exercise their right of reply, after which the question shall immediately be put.
15. The order of precedence of motions shall be:
    (a) That the question be now put;
    (b) To postpone or adjourn the matter to a later specified meeting;

(c) That the motion be not put;
(d) To refer the matter back to a committee for re-examination;
(e) To refer the matter to a committee for investigation and report;
(f) That the matter lie on the table;
(g) For temporary adjournment of the meeting for not longer than ten (10) minutes;
(h) For a temporary chairperson; and
(i) A vote of no confidence.

16. Voting shall be by show of hands or in writing as directed by the Chairperson. A member may abstain from voting on any question. The Chairperson shall have a casting vote only.

MEETINGS OF THE GUILD

General Meetings

39. (1) There shall be **two** General Meetings of the Guild. The **first** shall be held within the **first four (4) weeks** of the first semester. The second shall be held during the **second** semester and no later than **February 28**. This second meeting shall be the **Annual General Meeting of the Guild**.

(2) The business of the Annual General Meeting shall include consideration of Reports and Balance Sheets, as required by the Constitution or the Bye-Laws.

(3) At least **seven (7) days** notice of the Annual General Meeting shall be given in writing posted on the Notice Boards provided on the Campus for Guild Notices. All Reports to be considered at the Meeting shall also be posted on the Notice Boards within the time stated.

Notice of Motion at General Meeting

40. (1) If any Full Member of the Guild shall desire to introduce any motion for consideration at either General Meeting of the Guild he/she shall give to the Guild Secretary, not less than **three (3) days** before such a meeting, notice in duplicate, specifying the motion intended to be introduced, signed by no less than **ten (10) members**. The Guild Secretary shall publicise such notice on all Notice Boards including those provided on the Campus for Guild Notices.

(2) Amendments may be made to any such motion without any previous notice provided that a written statement thereof duly proposed and seconded be handed to the Chairperson of such meeting.

(3) The Chairperson shall have discretionary power to put any motion before such meeting for consideration, notwithstanding that the foregoing provisions of this rule have not been complied with.

(4) Guild workers shall have the right to attend Guild Meetings and move motions subject to the manner prescribed above in ***Article 29 (1)***.

Special General Meeting

41. (1) A special General Meeting shall be called:

(a) When the President deems it advisable

(b) When it is requested by a simple majority of the Guild Council

(c) If it is requested by the Council, the Senate or the Principal of the University of the West Indies, Cave Hill, or

(d) If it is requested by not less than **fifty (50) members** of the Guild who shall have sent a request in writing to the President stating the object for which the meeting is desired.

(2) Notice of a Special General Meeting shall be posted on all the Notice Boards including those provided on Campus for Guild Notices, at least **twenty-four (24) hours** before the date fixed for the meeting. The business of the meeting shall be limited to that which is specified in the notice.

Miscellaneous

42. (1) All General Meetings of the Guild shall be summoned by the President, or the person acting in his/her office.

(2) Minutes of the proceeding of each meeting shall be kept. At every meeting, the Minutes of the previous meeting shall be confirmed, subject to any corrections, and signed by the Chairperson. At a Special General Meeting the Minutes of the previous General Meeting shall not be taken unless they relate to the business of the meeting.

(3) The quorum shall be **fifty (50) Full Members** of the Guild of Students.

(4) General Meetings of the Guild shall be private and no public reports shall be made of the proceeding except with the authority of the Guild Council.

(5) At a General Meeting of the Guild only Full Members as defined by ***Article 6 (1)*** shall have the right to vote. Other members of the Guild shall have the right to attend and speak but shall not vote.

STANDING COMMITTEES

43 (1) There shall be the following Standing Committees of the Guild:

(i) The Student Faculty Committees;
(ii) The International Affairs Committee;
(iii) The Games Committee;
(iv) The Inter-Clubs Committee;
(v) The Public Relations Committee;
(vi) The Halls of Residence Committee;
(vii) The Part-time Committee;
(viii) The Finance Committee;
(ix) The Academic Affairs Committee;
(x) The National Affairs Committee;
(xi) The Constitution Committee;
(xii) The Library Committee;
(xiii) The Union Committee;
(xiv) The Publications Committee;
(xv) The Disciplinary Committee; and
(xvi) Such other Committees as shall be decided by the Guild Council from time to time.

(2) The Standing Committees shall be constituted within the first fortnight of the elections of the Guild Council. All Standing Committees shall meet within a fortnight and shall continue in office until new committees are appointed, in keeping with this Constitution or its Bye-Laws, and their respective regulations.

(3) Standing Committees shall make regulations for their own procedures and discipline of subject to the approval of the student body which they represent and the Guild Council.

(4) All standing Committees shall be governed by this Constitution and its Bye-Laws.

(5) All Standing Committees shall be directly responsible to the Guild Council and to the respective sections of the student body, which they represent.

(6) The President of the Guild shall be an ex-officio member of all Standing Committees of the Guild.

RULES FOR STANDING COMMITTEES

44. (1) All decisions of Standing Committees shall be arrived at by a simple majority of all the Committee members, with the exception of the Finance Committee which shall be arrived at by an absolute majority.

(2) All Standing Committees shall have power to set up such sub-committees as they may deem necessary for the adequate performance of their functions.

(3) All Standing Committees shall manage, control and be accountable for all the resources and equipment allocated to them by the Guild Council.

(4) All Standing Committees shall have the right to make, vary and terminate all contracts and business transactions as may be necessary for the adequate performance of their functions and with a view to achieving their bona fide purpose.

(5) Unless otherwise provided for, all members of Standing Committees shall be appointed by the Guild Council at its first meeting.

(6) Duties of Officers of all Standing Committees:

(i) All Standing Committees shall have a

(a) Secretary; and

(b) Treasurer

(ii) The Secretary of all such committees shall:

(a) Record minutes and make notes of the proceedings and the meetings of the Committee, as well as any resolutions and motions as are passed by the Committee;

(b) Carry on such correspondence as directed by the Committee or the Committee Chairperson acting on behalf of the Committee; and

(c) Prepare the Annual Report of the Committee, which is to be presented at the Annual General Meeting of the Guild.

(iii) The Treasurer of all such committees shall:

(a) Keep records of all financial transactions of the Committee;

(b) Authorize all payments from the funds of the Committee on the direction of the Committee or of the Committee Chairperson or Secretary acting on behalf of the Committee;

(d) Prepare the Financial Statement of the Committee, which is to be presented at the Annual General Meeting of the Guild.

(7) Meeting Procedure for all Standing Committees:

When conducting meetings, all Standing Committees shall adhere to the following meeting procedure:

(i) Meetings of the Committee shall be presided over by the Committee Chairperson or in their absence by any member of the Guild Council present or failing these by a member of the committee. The acting Chairperson shall be chosen by the meeting.

(ii) The Committee shall meet at least twice per semester.

(iii) Emergency meetings of the Committee shall be called by the Secretary on the instruction of the Committee Chairperson or at the written request of at least 5 members of the Committee

(iv) At least seventy-two (72) hours notice must be given before the holding of ordinary meetings of the Committee and twenty-four (24) hours for an emergency meeting.

(v) Matters listed on the Agenda of a meeting shall be dealt with as listed on the Agenda, unless a motion to suspend this standing order is passed to allow other matters to be discussed.

(vi) Minutes of the proceedings of each meeting shall be recorded. At every meeting, the minutes of the previous meeting shall be confirmed, subject to any corrections, and signed by the Chairperson.

(vii) One half of members shall form a quorum.

THE STUDENT FACULTY COMMITTEES

45. (1) In accordance with *Article 43* of this Constitution, the Student Faculty Committees shall be Standing Committees of the Guild.

(2) The Student Faculty Committees shall comprise of the following members of the Guild:

(a) Faculty Representative to the Guild Council;

(b) Year Representative or Department Representative (where applicable) to Faculty Committee;

(c) A Post Graduate Representative, where applicable;

(d) A Part-time and Evening Students Representative, where applicable; (e) A Committee Secretary;

(f) A Committee Treasurer; and

(g) Any other members as the Committee deems fit for the proper functioning of the Committee.

(3) Duties of Officers of the Student Faculty Committees:

(a) The Faculty Representative to the Guild Council of each Student Faculty Committee shall:

(i) Chair the meetings of their respective Student Faculty Committees;

(ii) Represent the views and interests of the Student Faculty Committee to the Guild Council;

(iii) Relay all directives and relevant information from the Guild and Guild Council to the students in their respective faculties; and

(iv) Perform all other functions as may from time to time be conferred on them by the Student Faculty Committee and Guild Council.

(b) In the case of Faculties with Departments, the Year Representative of each Student Faculty Committee shall represent the view of the Departmental Committees. Student Departmental Committees shall comprise different Year Representatives for each department.

(c) The Post-Graduate Representative of each Student Faculty Committee, where applicable, shall function in accordance with ***Article 29*** of this Constitution.

(d) The Part-time Representative of each Student Faculty Committee, where applicable, shall function in accordance with ***Article 30*** of this Constitution.

(e) The Committee Secretary of each Student Faculty Committee shall function in accordance with ***Article 44 (6) (ii)*** of this Constitution.

(f) The Committee Treasurer of each Student Faculty Committee shall function in accordance with ***Article 44 (6) (iii)*** of this Constitution.

(4) Meetings of the Student Faculty Committees shall be conducted in accordance with ***Article 44 (7)*** of this Constitution, unless otherwise stated.

THE INTERNATIONAL AFFAIRS COMMITTEE

46. (1) In accordance with *Article 43* of this Constitution, the International Affairs Committee shall be a Standing Committee of the Guild.

(2) The International Affairs Committee shall comprise of the following members of the Guild:

(a) The International Affairs Committee Chairperson;

(b) The Guild Secretary;

(c) The Public Relations Officer;

(d) The International Affairs Committee Secretary; and

(e) The International Affairs Committee Treasurer

(3) The International Affairs Committee shall have the following roles and powers:

(a) Shall coordinate and oversee the activities of all student island associations that are registered according to the requirements of this Constitution and its Bye-Laws, with a view to allocating and supervising the use of adequate resources, equipment and related materials by these associations.

(b) Shall maintain and develop fraternal ties with the International Union of Students, National Unions of Students in other countries, the Guilds of all the Campuses of the UWI.

(c) Shall promote, foster and develop cultural, educational and social links between the Guild and the wider international community.

(d) Shall foster international fellowship and understanding primarily between youth and students in the Caribbean and other parts of the world, by developing meaningful programmes of mutual benefit, relevant to the wider international community.

(e) Shall seek to enhance and encourage the broadest possible participation by students in such programmes which may from time to time be organized.

(f) Shall act as the liaison body between the Guild and the aforementioned organizations, in accordance with the policies laid down by the Guild Council.

(g) Shall have the power to set up sub-committees to facilitate the efficient functioning of the International Affairs Committee.

(4) Duties of Officers of the International Affairs Committee:

(a) The International Affairs Committee Secretary shall function in accordance with *Article 44 (6) (ii)* of this Constitution.

(b) The International Affairs Committee Treasurer shall function in accordance with *Article 44 (6) (iii)* of this Constitution.

(5) Meetings of the International Affairs Committee shall be conducted in accordance with *Article 44 (7)* of this Constitution, unless otherwise stated.

THE GAMES COMMITTEE

(1) In accordance with Article 37 of the Constitution, the Games Committee shall be a Standing Committee of the Guild.

(2) The Games Committee shall comprise of:

(a) Games Committee Chairman
(b) Faculty and Hall Representatives
(c) Games Committee Secretary
(d) Games Committee Treasurer
(e) Any other members that the Committee deems fit for the adequate performance of its duties

(3) A vacancy in the office of Games Committee Chairman shall be filled in accordance with Article 30 of the Guild Constitution.

Representative on Guild Council

The Games Committee Chairman shall represent the Games Committee on the Guild Council. He shall act on behalf of the Games Committee between meeting of the committee.

Responsibilities of the Committee

1. The Games Committee is required to organise and execute (1) major sporting activity in each semester of the academic year.
2. The Games Committee is also expected to organise and execute other sporting and/or gaming initiatives throughout the academic year
3. The Games Committee is required to assist all other Guild committees and student association committees with their sporting or gaming activities. This assistance may include but is not limited to financial or logistical support.

Relationship with the Academy of Sport

1. The Games Committee is encouraged to work alongside the Academy of Sport for the facilitation of sporting and/or gaming activities on campus.

2. The Games Committee Chairperson, in conjunction with the Guild's Finance Committee, reserves the right to make decisions regarding donations to any sporting activities or teams on campus.

Annual Reports

The Annual Report and Financial Statement of the Games Committee shall be prepared by the Games Committee Secretary and the Games Committee Treasurer respectively and shall be presented at the Annual General Meeting of the Guild, as provided for in Article 33 (1) of the Constitution.

Budget

The Games Committee, in consultation with the recognised Clubs, shall prepare estimates of income and expenditure for presentation to the Guild Council within the first two (2) weeks of the first semester. The Games Committee shall supervise the expenditure of grants made by the Guild Council but shall not be empowered to reallocate funds amongst clubs.

Year of Office

The year of office of the Games Committee shall begin and end with the year of office of the Guild Council.

Meetings of the Games Committee

Meetings of the Games Committee shall be presided over by the Games Committee Chairman or in his/her absence by any member of the Committee chosen by the meeting.

The Games Committee shall meet at least twice during each semester and the first meeting in the first semester shall be within the first fortnight of the semester.

Emergency meetings of the Committee shall be called by the Games Committee Secretary on the instruction of the Games Committee Chairman or at the written request of at least five (5) members of the Committee.

At least seventy-two (72) hours notice must be given before the holding of an ordinary General Meeting of the Committee and twenty-four (24) hours notice for an Emergency meeting.

Matters listed on the agenda of a meeting shall be dealt with as listed on that agenda unless a motion is passed to allow other matters to bediscussed.

Minutes of the proceeding of each meeting shall be kept. At every meeting the Minutes of the previous meeting shall be confirmed, subject to any corrections, and signed by the Chairman.

Five (5) members shall form a quorum.

THE INTER-CLUBS COMMITTEE

48. (1) In accordance with *Article 43* of this Constitution, the Inter-Clubs Committee shall be a Standing Committee of the Guild.

(2) The Inter-Clubs Committee shall comprise of the following members of the Guild:

(a). The Vice-President who shall be Chairpersons of the ICC;

(b). The President as an ex-officio member;

(c). The Chairpersons of the clubs/societies recognized by the ICC;

(d). The Inter-Clubs Committee Secretary;

(e). The Guild Treasurer who shall be Treasurer of the Committee.

(3) The Inter-Clubs Committee shall have the following roles and powers:

(a) Shall coordinate on a planned basis the activities of all the recognized social, cultural, religious and political clubs or societies of the Guild, with a particular view of allocating and supervising the use of adequate resources, equipment and related material to each Club/Society recognized by the ICC.

(b) Shall also promote the broadest student participation in the activities of its recognized clubs and societies.

(c) The ICC shall in consultation with the recognized Clubs and Societies and on the advice of the Office Manager, prepare estimates of income and expenditure for presentation to the Guild Council within the first three (3) weeks of the first semester. The ICC shall allocate the grant made by the Guild Council among the said Clubs/Societies and exercise a general control of their expenditure. All Clubs/Societies affiliated to the ICC must submit general and financial reports to the Guild Treasurer at the end of every semester, and if this is not done, no grant will be disbursed until that Club or Society complies with this regulation.

(d) The ICC shall prepare a report, which shall include in summary form, a report of the activities of the recognized Societies and a statement of their income and expenditure to be presented at the Annual General Meeting of the Guild.

(4) Duties of Officers of the Inter-Clubs Committee:

(a) The Inter-Clubs Committee Secretary shall function in accordance with *Article 44 (6) (ii)* of this Constitution.;

(b) The Guild Treasurer shall function in accordance with *Article 44 (6)(iii)* of this Constitution.

(5) Meetings of the Inter-Clubs Committee shall be conducted in accordance with *Article 44 (7)* of this Constitution. However, the Inter-Clubs Committee shall meet within four (4) weeks of the first semester and not less than once per semester.

CLUBS AND SOCIETIES

Recognition

(1) Any application for recognition of a non-game Club/Society shall be addressed in writing to the Secretary of the ICC. Membership in any such Club/Society must be no less than twenty (20) Full or Associate members of the Guild and any such application for recognition shall be accompanied by a copy of the Constitution of the Club/Society and its register signed by members.

(2) In exceptional circumstances the ICC shall consider the application of any non-games Club and Society of less than twenty (20) members.

(3) The ICC shall, in its discretion, grant or refuse applications within four (4) weeks of their receipt. If the ICC refuses any such application, the applicant shall have the right of appeal to a Meeting of the Guild Council within one (1) month.

(4) Before granting recognition of a Club/Society, the ICC shall ensure that the Constitution of the Club/Society in no way conflicts with the Constitution of the Guild of Students.

(5) The rights conferred by recognition are as follows:

(a) The right to have a notice in the appropriate publication of the Guild Press;

(b) The right to use the Notice Boards of the Guild;

(c) The right to use the name of the University of the West Indies or the letters UWI in the title of the Society;

(d) The right to erect Notice Boards subject to the approval of the Guild Council;

(e) The right to a Guild subvention;

(f) The right to use the facilities of the Guild; and

(g) The right to hold functions.

(6) The officers of all Clubs and Societies shall include:

(a). The President/Chairperson;

(b). Secretary; and

(c). Treasurer

(7) In the event the post of President or any other member of the committee of a Club or Society becomes vacant, the vacancy shall be filled in accordance with the Constitution of that Club/Society.

(8) Recognition shall not imply any financial liability. Any such liability shall be the subject of special agreement with the ICC or Guild Council.

(9) Individual Clubs/Societies may make rules for their management subject to the approval of the ICC.

(10) Recognized Clubs/Societies shall submit to the Chairperson of ICC at the beginning of each semester, details of proposed activities. The Chairperson of the ICC shall be notified in writing of any alterations to the schedule of activities.

Meetings

(11) There shall be an Annual General Meeting of each Club or Society during the first four (4) weeks of the first semester, unless otherwise approved by the ICC.

Property

(12) (a) The Secretary of each Club shall be required each year before December 15th to furnish the Treasurer of the ICC with a complete inventory of the property of their Club.

(b) The Treasurer of the ICC shall arrange through the Guild Council for the insurance of valuable equipment in the possession of various clubs.

(c) The Presidents of Clubs/Societies shall be responsible for the proper custody and safety of all club/society's property and shall take steps to ensure that such property is properly secured.

Membership

(13) (a) Any full member of the Guild is eligible for membership in any Club/Society. Such Club/Society may admit to membership such associate members of Guild as they choose or any other persons, subject to the approval of the ICC.

(b) Any external member of the Guild, provided they are a financial member of the Guild shall be entitled to all privileges of full members of recognized Clubs or Societies upon

signing the register, except the privilege of holding office in that Club/Society. Academic staff may only become full members of recognized Clubs/Societies upon obtaining full membership of the Guild.

Reports and Budgets

(14) All Clubs/Societies should send in their Annual Reports and Budgets for the ensuing year by May 31st each year, in duplicate, to the Guild Council and the Office Manager for approval.

GAMES CLUBS

Recognition

(1) Every application for the recognition of a Games Club shall be addressed in writing to the Secretary of the Games Committee. Membership in any such club must not be less than twenty (20) Full or Associate members of the Guild and any such application for recognition shall be accompanied by a copy of the proposed constitution of the Club, and its register signed by members.

(2) In exceptional circumstances, the Games Committee shall consider the application of any Games Club with less than twenty (20) members.

(3) The Games Committee shall in its discretion grant or refuse an application within four (4) weeks of its receipt. If the Games Committee refuses any such application, the applicant shall have the right of appeal, to a meeting of the Guild

Council within nine (9) months. If the Games Committee shall grant any such application, their decision shall be ratified by the Guild Council within three (3) months.

(4) Before granting recognition to a club, the Games Committee shall ensure that the proposed Constitution of the club in no way conflicts with the Constitution of the Guild of Students.

(5) The officers of all Clubs shall include:

(a). Club President;

(b). Club Vice-President;

(c). Secretary; and

(d). Treasurer.

(6) The rights conferred by recognition are as follows:

(a). The right to have notices in the publication of the Guild Press;

(b). The right to use the Notice Boards of the Guild;

(c). The right to use the name of the University of the West Indies or the letters UWI in the name of the Club;

(d). The right to erect Notice Boards subject to the approval of the Guild Council;

(e). The right to a Guild subvention;

(f). The right to use the facilities of the Guild; and (g). The right to hold functions.

Rules

(7) (a) Individual clubs may make rules for their own management subject to the approval of the Games Committee.

(b) Recognition shall not imply any financial liability on the part of the Games Committee or the Guild Council.

(c) No alteration of the Constitution of a recognized club shall be valid unless it has been approved by the Games Committee.

(d) When the conditions of membership of a club include a subscription, this subscription shall not be valid unless approved by the Games Committee.

Registration

(8) Every member of the Guild who desires to be registered as a member of one or another of the recognized clubs shall sign the following declaration:

"I desire to be enrolled as a member of the U.W.I. ..... and I

undertake to represent the Club if called upon to do so, unless I am prevented by good cause. If I shall be prevented I shall immediately inform the Captain".

Meetings

(9) (a) Unless otherwise approved by the Games Committee, there shall be an Annual General Meeting of each Club affiliated to the Games Committee, during the first five (5) weeks of the first semester at which the officers for the ensuing year shall be elected.

(b) Each club shall have a General Meeting at least once each semester that falls during its playing season, and a meeting shall be held within four (4) weeks of the beginning of every season.

(c) The Games Committee Secretary shall be invited to attend all meetings of recognized clubs.

(d) Notice of the date of Annual General Meetings shall be posted on the appropriate Notice Boards at least fourteen (14) days in advance.

(e) Minutes of meetings shall be kept, and at the end of every season shall be submitted to the Games Committee Secretary together with a report of the club's activities for the season.

Property

(10) (a) The Secretary of each club shall be required each year before the end of the first semester to furnish the Games Committee Treasurer with a complete inventory of the property of their club.

(b) The Games Committee Treasurer shall arrange for the insurance of valuable equipment in the possession of various clubs.

(c) The Captain of each Club shall be responsible for the proper custody and safety of all club property and shall take steps to ensure that such property is properly secured.

Membership

(11) (a) Any external member of the Guild, provided they are a financial member of the Guild shall be permitted to represent Games Clubs, if they hold membership of such Clubs however, these members may not constitute more than twenty-five (25%) percent of any team.

(b) Names of members of Clubs must be submitted to the Chairman of the Games Committee for confirmation of their membership.

Accounts

(12) The Treasurer of each club shall send, in duplicate, to the Games Committee Treasurer and the Office Manager, as often as they shall require, accounts of income and expenditure of their club.

THE PUBLIC RELATIONS COMMITTEE

49. (1) The Public Relations Committee shall comprise of the following members of the Guild:

(a). The Public Relations Officer, who shall be Chairperson of the Committee;

(b). The Publications Officer, who shall be the Deputy Public Relations Officer;

(c). Four other members appointed by the Chairperson from the student body, subject to the approval of the Guild Council;

(d). The Treasurer;

(e). The Secretary;

(f). The Guild Photographer, who shall be appointed by the Guild Council, on the recommendation of the Committee; and

(g). Such editors and sub-editors of the Guild official organ and any other Guild Publication as may be allowed.

(2) The Public Relations Committee shall have the following roles and powers:

(a) Shall liaise with relevant members of the Guild Council in preparing and promoting to the wider community both locally and regionally - the policies, programmes and activities of the Guild.

(b) Shall have the power to create sub-committees in order to facilitate the effective functioning of the Committee. Such sub-committees shall be responsible for:

(i) Media/Communication;

(ii) Maintaining the Guild Website;

(iii) Fostering good relations between the UWI Administration and the Guild.

(c) Shall be responsible for the production and distribution of the official organ of the Guild, at least three times per semester, and for the production of such newspapers, books, magazines, articles, etc.as the Guild Council shall desire to publish.

(d) All information to be published by the Public Relations Committee, shall be done so subject to the approval of the guild Council.

THE HALLS OF RESIDENCE COMMITTEES

50. (1) As far as community life in a Hall of Residence is concerned, the Guild shall recognize as the representative organ of the students in that particular Hall, the Hall Committee as elected and constituted by the terms of the Constitution of that Hall.

(2) The Constitution of each Hall of Residence and any amendments thereto shall be ratified by a simple majority vote of the Guild Council.

(3) The President of the Guild shall be an ex-officio member of all Hall Committees.

(4) Each Hall shall be represented on the Guild Council by the respective Hall Chairperson who shall be elected by a simple majority vote of the Full Members residing on that Hall.

THE PART-TIME COMMITTEE

51. (1) The Part-Time shall comprise of the following members of the Guild:

(a). The Part Time Students' Representative to the Guild Council;

(b). A Representative from each Faculty, where applicable from the Committee.

(2) The Part-Time Committee shall have the following roles and powers:

(a) Shall be responsible to Part-Time in their respective Faculties;

(b) Shall represent the views and interests of Part-Time students to the Guild Council and the University through the Academic Board; and

(c) Shall promote maximum participation of Part-Time students in activities organized by the Guild Council, in addition to other activities that advance the curricular and extra-curricular interests of students.

(3) Duties of Officers of the Part-Time Committee:

(a) The Part-Time and Evening Students' Representative to the Guild:

(i) Shall chair the meetings of the Part-Time and Evening Students' Committee;

(ii) Shall represent the views of the Part-Time and Evening Students' Committee to the Guild Council and the Academic Board;

(iii) Shall relay all directives and relevant information from the Guild, Guild Council and the University to Part-Time; and

(iv) Shall perform all other functions as may from time to time be conferred on them by the Part-Time Committee and Guild Council.

FINANCE COMMITTEE

52. The Finance Committee shall comprise the following members:

(a) The Guild Treasurer who shall act as Chairperson of the Committee
(b) The Vice-President/ Inter-Clubs Committee Chairman
(c) The Union Committee Chairperson
(d) An elected representative from amongst the Guild Committee Chairpersons
    a. In a UWI Games year this representative shall be the Games Committee Chairperson
(e) An elected representative from amongst the Faculty Representatives
(f) An elected representative from amongst the Hall Representatives

(1) The Finance Committee shall meet within the first four (4) weeks of the first semester. The Committee may be convened at any time by the Guild Treasurer if he/she deems it necessary.
(2) The Finance Committee shall study and, if necessary, revise the estimates of income and expenditure of the various committees as specified under Article 31 (5) (c) of this Constitution, which are submitted to the Guild Council for its approval.
(3) All business of the Finance Committee shall be submitted to the Guild Council for its approval.
(4) In the absence of the Guild Treasurer, the President may convene a meeting of the committee.

THE ACADEMIC AFFAIRS COMMITTEE

53. (1) The Academic Affairs Committee shall comprise of the following members of the Guild:

(a). The Guild President; (Chairperson)

(b). The Faculty Representatives;

(c). The Part Time and Evening Representative;

(d). The Post Graduate Representative; and

(e) Any other members that the Committee deems fit for the adequate performance of its duties.

(2) The chairperson of the Academic Affairs Committee shall be determined by the Faculty Representatives at the first meeting of the Committee.

(3) The Academic Affairs Committee shall have the following roles and powers:

(a) It shall be responsible for the consideration, and investigation of any and all academic issues of the members of the Guild brought to the attention of the Guild Council or any member thereof.

(b) It shall be charged with developing all necessary representations to University Administration and determining the appropriate course of action with respect to academic issues.

(c) It shall meet at least once per month during the semester

NATIONAL AFFAIRS COMMITTEE

54. (1) The National Affairs Committee shall comprise:

(i) The National Affairs Chairperson
(ii) All Faculty Representatives
(iii) The Vice-President
(iv) The Publications Committee Chairperson
(v) The Public Relations Officer

(2) The National Affairs Committee shall promote, foster and develop the cultural, educational and social links with, and develop meaningful programmes in the wider national community. The main objective of which is to enhance and encourage the broadest possible participation, by students in such programmes which may from time to time be organised.

(3) The National Affairs Committee shall also seek to ensure holiday jobs for students, broadcasting facilities on national radio, student discounts in the commercial sector and travel facilities, and other matters which affect students' interests: landlordism, book prices and other related matters.

CONSTITUTION COMMITTEE

55. (1) The Constitution Committee shall comprise a Chairperson and **four (4)** other members appointed from the student body by the Chairperson. Of other this four, not more than **one (1) member** may be taken from any faculty.

(2) The Chairperson shall be the person who is the representative of the Law Faculty on the Guild Council.

(3) The Constitution Committee shall be responsible for the drafting of amendments to the Constitution in accordance with this Constitution.

(4) The Committee shall have jurisdiction to investigate any proposed suspension of a Full or Associate member of the Guild.

(5) The Committee shall also be responsible for adjudicating on all matters relating to the interpretation of the Constitution subject to approval by the Guild Council.

LIBRARY COMMITTEE

56. (1) The library Committee shall comprise:

(i) The Librarian, who shall be Chairperson of the Committee
(ii) A representative from each Faculty
(iii) One representative from the Hall of Residence appointed by the Hall of Residence Committee as constituted under this Constitution
(iv) The Guild Worker representative or his nominee,
(v) Such other as are necessary

(2) The Committee shall nominate a Secretary from amongst its members.

(3) The Library Committee shall be responsible for the establishment and maintenance of any Guild Library. This Library shall contain all literature owned and received by the Guild and shall operate to provide members of the Guild with such reading matter as may be required.

UNION COMMITTEE

57. (1) The union shall be controlled and administered as a Club for the members of the Guild by a Standing Committee of the Guild Council which, shall be known as the Union Committee.

(2) The Union Committee shall comprise the following Officers and members of the Guild.

(i) The Union Committee Chairperson
(ii) The President
(iii) The Guild Treasurer
(iv) The Public Relations Officer
(v) The Union Treasurer
(vi) The Union Secretary
(vii) Three other members

(3) The Union Committee shall have the following powers:

a. To make rules regulating the conduct of members of the Union and the use of the premises of the Union
b. To suspend from the use of the Union or of any part of the facility thereof any member of the Guild who in the opinion of the Union Committee shall have been guilty of disorderly or improper conduct in the Union or breach of

the rules made under this Section. An appeal from suspension shall be made to the Guild Council, which shall deal with it in accordance with **Article 10** of this Constitution.

c. Such other powers as are necessary for the conduct and administration of the Union.

(4) (a) There shall be the following Sub-Committees of the Union Committee:

(i) Bar
(ii) Music
(iii) Buildings
(iv) Decorations and Furnishings
(v) Records

(b) These sub-Committees shall be appointed by the Union Committee

(c) Sub-Committees shall be governed by Bye-laws made on their own behalf

(d) Ad-hoc committees may from time to time be appointed by the Union Committee.

Duties of Officers:

(5) (a) The Union Committee Chairperson shall preside over meetings of the Union Committee when he/she is present. The Union Committee Chairperson shall be responsible for the custody and safety of all Union property and shall take steps to ensure that such property is secured. The Union Committee Chairperson shall act on behalf of the Union Committee between meetings of the Union Committee.

(b) **The Union secretary shall:**

(i) Keep minutes of the proceedings or the meetings of the Union Committee.

(ii) Carry on such correspondence as directed by the Union Committee or the Union Committee Chairperson acting on behalf of the Committee, and

(iii) Prepare an annual report on the activities of the Union for presentation to the meeting of the Committee called for the purpose of receiving such report, which report shall be submitted at the Annual General Meeting of the Guild.

(c) **The Union Treasurer shall:**

(i) Keep records of all transaction of the Union

(ii) Authorise all payments from the funds of the Union on the direction of the Union Committee or of the Union Committee Chairperson, Union Secretary and Union Treasurer acting on behalf of the Union Committee

(iii) Shall preside over meetings of the Bar and Canteen Sub-Committee, and

(iv) Shall prepare the necessary financial statements for presentation to the Union Committee and Guild Council

Temporary Members

(6) All members of courses and summer schools organised by the University may be admitted as temporary members of the Union upon payment of a fee. Such fee shall be prescribing by the Guild Council and approved by the Campus Council.

Guests

(7) (a) Guests must be introduced into the Union by members of the Guild. They must sign the book kept for the purpose as must the members introducing them.

(b) The Union Committee may restrict the number of guests to be introduced by a member of the Guild at dances or other functions organised by the Union Committee.

Bar

(8) (a) The normal hours of opening and closing of the Bar shall be specified from time to time by the Union Committee, but the hours of closing at night shall be **midnight on regular evenings and 3:00 am on evenings with events.**

(b) A schedule of such hours shall be kept posted on the notice board.

(c) No persons other than members of the Guild of Students and their guests may be served at the Union Bar.

Meetings of the Union Committee

(9) (1) Meetings of the Union Committee shall be presided over by the Union Committee Chairperson or in his/her absence by any member of the Guild Council there present or failing these by a member of the committee. The acting Chairperson shall be chosen by the meeting.

(2) The Union Committee shall meet at least twice per semester.

(3) Emergency meetings of the Committee shall be called by the Secretary on the instruction of the Union Committee Chairperson or at the written request

(4) At least **seventy-two (72) hours** notice must be given before the holding of ordinary meetings of the Committee and **twenty-four (24) hours** for an emergency meeting.

(5) Matters listed on the Agenda of a meeting shall be dealt with as listed on the Agenda, unless a motion to suspend this standing order is passed to allow other matters to be discussed.

(6) Minutes of the proceedings of each meeting shall be kept. At every meeting, the minutes of the previous meeting shall be confirmed, subject to any corrections, and signed by the Chairperson.

(7) Five **(5)** members shall form a quorum.

Loan Of Union To Clubs, Societies and/or Individuals

(10) (1) Requests for loan of the premises should normally be made at least on **(1) week** in advance.

(2) All guests who are not members of the Guild shall be covered by invitation.

(3) Arrangements for the function must be to the satisfaction of the Union Committee.

(4) No public advertisement may be made unless approval is granted by the Union Committee.

(5) The promoter or promoters must undertake in writing to make such provision for security as is deemed necessary by the University.

(6) The promoter or promoters shall be responsible for any damage breakage or loss of Union property and must indemnify the Union Committee against such loss or breakage or damage.

(7) Profits at the Bar shall be retained by the Union unless otherwise specified by the Union Committee.

(8) All arrangements for staffing of the Bar and Canteen shall be made by the Union Committee.

(9) Members of the Union Committee shall have free access to the Union premises at all times.

PUBLICATIONS COMMITTEE

58. (1) The Publications Committee shall be subject to the direction and control of the Guild Council.

(2) The committee shall comprise:

a. The Publications Committee Chairperson
b. Such editors and sub-editors of the Guild official organ and any other Guild publication as may be allowed
c. Treasurer
d. Secretary
e. The Guild Photographer who shall be appointed by the Guild Council on the recommendation of the Committee, and
f. Distribution Manager, appointed by the Committee
g. The Public Relations Officer

(3) The Committee shall be responsible for the production of the official organ of the Guild, and for the production of such other newspapers, books, magazines, articles, etc. as the Guild Council shall desire to publish.

(4) The Committee shall be responsible for the production and publication of the official organ of the Guild at least **three (3) times** per semester.

THE DISCIPLINARY COMMITTEE

59. (1) The Disciplinary Committee shall comprise of the following members of the Guild:

(a). The Chairperson shall be the Constitutional Chairperson;

(b). The President

(c). The Secretary;

(d). Two other Guild Councilors selected by the Guild Council who, in their discretion, are not involved in the matter before the committee or has not displayed any bias relating to the issue.

(2) Should a member of the standing committee be brought before the Disciplinary Committee, that individual shall be precluded from sitting on the Disciplinary Committee to hear that issue but rather shall be replaced by a Councilor randomly selected by the other standing members.

(3) Notwithstanding the above provisions, should the Guild Council by an absolute majority conclude that a sufficiently objective disciplinary committee cannot be composed from amongst its membership, the matter shall be referred directly to the University Disciplinary Committee for consideration and adjudication.

(4) The Disciplinary Committee shall be responsible for the consideration, investigation and adjudication of valid complaints made against Guild Councilors, Officers and Committees based on the Councilor Code of Conduct of this Constitution.

Procedure

(6) Matters which may be brought before the Disciplinary Committee include, but are not limited to:

(a) Contravention of the Councilor Code of Conduct;

(b) Breach of Guild or University rules, regulations, procedures or policies;

(c) Procedural misconduct in administration of post or duties;

(d) Indiscipline or inappropriate conduct during occupation of post/position which is deemed to reflect negatively on the Guild;

(e) Misrepresentation related to or defamatory statements in respect of the Guild, Guild Council and/or University omissions sufficiently grave to amount to serious misconduct; or

(f) Breach of any duty imposed by this Constitution or Bye-Laws which results in material damage,

(7) All complaints must be submitted writing, accompanied by a student identification number, to the Constitutional Chairperson and Returning Officer, who would be subsequently required to notify the President, Secretary and the accused.

(8) Subject to the rules of natural justice, the accused shall be made fully aware of the case being brought against them, furnished with a copy of the complaint and given a fair opportunity to respond to the matter.

(9) Upon receipt of any official complaint which the Disciplinary Committee, once convened, deems to be valid, investigation must commence within 3 days of receipt requiring all parties and witnesses to submit written statements and/or recorded oral submissions.

(10) A decision must be made by the Disciplinary Committee no later than two (2) weeks after the commencement of investigations in the form of a formal report in writing presented to Council, or a formal application for an extension subject to approval of the Guild Council.

(11) Disciplinary action taken by the Disciplinary Committee must be reasonably proportionate to the offence by reference to its nature, magnitude, context, duration and disposition of the parties to the dispute.

(12) The Disciplinary Committee may employ one or more or the following actions:

(a) Issue a written caution;

(b) Require a statement/apology on the matter;

(c) Issue a declaration of the state of affairs;

(d) Issue a mandate to take a particular course of action;

(e) Suspend or restrict privileges; or

(f) Review and/or set aside any decision related to Guild affairs directly or indirectly.

(13) Failure to comply with the finding/ruling of the disciplinary committee constitutes immediate grounds for the institution of recall proceedings.

(14) Official challenges to a Disciplinary Committee decision must be submitted in writing no later than one (1) week after the report is laid before council, to Returning Officer, who would be subsequently required to make a report to the President and Secretary.

(15) Where findings/rulings of the Disciplinary Committee are successfully challenged, the matter and all reports and/or findings must be referred to the University Disciplinary Committee for consideration and adjudication.

FINANCE

60. (1) The financial year of the Guild shall be from **April 1 to March 31** of the succeeding year.

(i) A financial statement shall be presented to the student body at the Annual General Meeting.

(ii) All monies paid under ***Article 11*** of this Constitution shall be paid to the Guild Council in accordance with the Financial Code of the University

(2) The Guild Council shall submit estimates of Income and Expenditure for the approval of Campus Council, by **June 30** of each year.

(3) The funds of the Guild shall be allocated by the Guild Council to the following purposes:

a. The general administration expenses of the Guild (102) The Union
b. The Games Committee
c. The Inter-Clubs Committee
d. The Publications Committee
e. The National Affairs Committee
f. The International Affairs Committee
g. The Public Relations Committee and
h. Any other purpose which, shall in the opinion of the Guild Council further the objects of the Guild as set out in the Constitution.

(4) The cost of the accommodation of the President in the Hall during his/her term of office. If the President chooses to live off-campus, the Guild Council shall pay to him/her a sum equivalent to the cost of accommodation in Hall, but only for the relevant period of his/her office.

(5) All Committees of the Guild shall submit to the Guild Council estimates and accounts of income and expenditure.

INVESTMENTS

61. Subject to the approval of Campus Council after consultation with the Office Manager, the Guild Council shall have power by an absolute majority to invest any part of the funds of the Guild in any securities which, shall for the time being, be authorised by law as trust securities. All such investments shall be made in the name of the University of the West Indies, St. Augustine, which shall hold them in trust for the Guild.

BYE-LAWS

62. (1) Subject to *Article 2(2),* the Guild Council may from time to time make Bye- laws which shall carry into effect this Constitution and shall promote the objects of the Guild.

(2) Bye-laws may be made, repealed or amended by a resolution passed by an absolute majority of the Guild Council.

(3) The power to make Bye-laws shall not be limited by, or with reference to, any Bye-law.

PETITIONS

63. (1) The Guild Council may at any time in its discretion present petitions, reports, recommendations and other communications relating to the affairs of the Guild to the Council or any other recognized University body or authority.

(2) If any one hundred (100) or more Full Members of the Guild desire that the Guild shall petition the Council or any other recognized body or authority on any matter, they shall first forward to the President, a written draft of the petition duly signed by all of them and the President shall bring such draft petition to the notice of the Guild Council at its next meeting.

(3) The Guild Council shall in its discretion and after consultation with the Student Faculty Committees:

(a) Thereupon accept the petition and present it to the Council any other recognized University body as the case may be, on behalf of the Guild;

(b) With the approval of the members signing it, amend the draft petition and forward it to the appropriate body; or

(c) Direct the President to summon a Special General Meeting of the Guild to consider the petition.

(4) If any fifty (50) Full Members of the Guild shall present in due form a petition as in *Sub-Article (2)* of this Article to the Guild Council, the Guild Council shall forward such petition to a Special General Meeting of the Guild.

(5) Where a Special General Meeting is summoned, it may resolve either that such petition shall be presented with or without amendment, or that it shall not be presented.

VOTES OF CENSURE AND NO CONFIDENCE

64. (1) Motions leading to votes of censure against and no confidence in an officer of the Guild or any Committee of the Guild or the Guild Council existing shall be considered at any General Meeting of the Guild, as long as they arise from the

business of the meeting.

(2) Such a motion shall be passed by a majority of more than fifty (50%) percent of the members present at the meeting.

(3) In the case of a vote of no confidence in any member of the Guild Council, or its Committees, the said member shall be called upon to resign within two (2) days of said no confidence vote.

(4) With respect to a vote to recall, said recall shall be deemed as having taken immediate effect.

(5) Until such time as the vacant office is filled, the recalled member shall be deemed accountable to the Guild.

RECALL OF ELECTED MEMBERS

65. (1) Any elected member of the Guild Council shall be subject to recall on the basis of non-performance or misconduct according to procedures outlined in the Bye-laws accompanying this Constitution.

(2) Any elected member of the Guild Council may be recalled during the tenure of office, **June 1st to May 31st.**

AMENDMENTS TO CONSTITUTION

66. (1) This Constitution may only be amended or added to not before **three (3) years** has elapsed since the last amendment or addition. Such amendment or addition shall be by a resolution passed and approved as follows:

(a) Passed by an Annual or Special General Meeting of the Guild by an absolute majority. Copies of the proposed resolution and of the section of the Constitution affected shall be posted up with every notice of such meeting not less than **seven (7) days** before the date fixed for that meeting.

(b) By the Council on the recommendation of the Senate.

(2) Such alteration, amendment or addition shall take effect from the date of the meeting of the Council on which it was approved, or from such date as may be approved by the council.

(3) Should any amendment providing for the election or appointment of an officer of the Guild or a member of the Guild Council or any of its Standing Committees come into effect after the first meeting of the Guild Council, the Guild Council may in its discretion do one of the following:

(a) Make nomination (s) to the post (s) concerned, whether the post shall be normally elective or not, or

(b) Make appointment (s) to the appointed post (s) only, and authorise the Returning Officer to hold elections to fill the new elective post (s) in the manner prescribed.

(4) Should an amendment providing for the abolition of an office the Guild membership on the Guild Council or any of its Standing Committee come into effect after the first meeting of the Guild Council, the Guild Council shall make a decision on the procedure to be adopted.

ELECTIONS

67. The Elections process shall be governed by the Electoral Code at Appendix A.

BYE-LAWS

RECALL

1. In keeping with the Constitution, the recall procedure will be as follows:

(a) In the case of the following:
- (1) The President
- (2) The Vice-President
- (3) The Guild Secretary
- (4) The Guild Treasurer
- (5) The Union Committee Chairperson
- (6) The National Affairs Committee Chairperson
- (7) The International Affairs Committee Chairperson
- (8) The Guild Secretary
- (9) The Games Committee Chairperson
- (1 0) The Publications Committee Chairperson
- (1 1) The Public Relations Officer

Recall shall be on the recommendation of a majority of the Guild Council ratified by a majority vote of a quorum of the Guild of Students.

(b) In the case of Faculty Representatives and Hall Chairperson on the recommendation of the majority of their respective committee members subject to ratification by a majority of their constituents.

(c) In the case of Worker Representative by a majority of Guild Workers.

(d) (I) In the case of **sub-article (a)** recall proceedings may be initiated by a petition in writing signed by **fifty (50) students** explaining their reasons for desiring recall, which should be addressed to the Returning Officer who shall bring the matter to the attention of the Guild Council.

(ii) A majority decision on the matter by Guild Council should be placed on relevant Notice Boards and where recall is recommended, notice of a Special General Meeting must be placed on relevant Notice Boards **seven (7) days** in advance.

(e) (I) In the case of **sub-article (b) & (c) by twenty (20) members** of the particular constituency in written form, addressed to the Returning Officer, who shall bring the matter to the attention of the respective committee.

(ii) Notification of a decision by committee (s) should be placed on Notice Boards in the respective constituency and at a Special Meeting convened, within **two (2) weeks** the matter shall be decided by a majority vote of all the constituents.

2. Notwithstanding **sub-article (a), (b) and (c) of Section 58** above, where any petition in due form signed by **one hundred (100)** Full Members of the Guild or **forty (40) members** of the Faculty, or Department or Hall concerned is directed to representative body (other Guild Council or relevant committee) and is not carried to a Special General Meeting as above, then such petition of **one hundred (100) of forty (40) members** as the case may be shall be taken forthwith by the representative body to a Special General Meeting of the general body (the Guild, Faculty, or Hall as the case may be) where such petition in due form shall be presented to the general body for amendment, approval or rejection by a majority vote of a quorum.

3. (1) In this section **"Special General Meeting"** means a Special General Meeting of the general body, the business of which shall solely be the consideration of the recall petition presented for approval, amendment of rejection.

(2) In this section a **"quorum"** of any general body other than the Guild shall be three quarters of the Full Members registered in such constituency.

APPENDIX A

Electoral Code

OF

The Guild of Students University of the West Indies

Cave Hill Campus

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Preamble

This Elections Code sets forth the policies, procedures and rules for all elections at the University of the West Indies, Cave Hill Campus. The code was created out of a need to ensure that there is uniformity in the electoral process on our campus.

The code seeks to ensure that elections are:

1. Democratic: by providing candidates ample time for campaigning
2. Fair: through methods of enforcement of Election law,
3. Equal Opportunity: by informing students of the requirements and procedures to run for office, and providing support and guidance for candidates who may need or desire it.

The code was created after consultation with Returning Officers of Cave Hill's Campus Halls, Island Association and Clubs and Societies.

Guild Council 2009-2010

Members of the 2009-2010 Guild Council

1. **President:** Carl "Alff" Padmore
2. **Treasurer:** Dario Greenidge
3. **PRO:** Danny Babb
4. **Union Committee Chairperson:** Greg Scott
5. **Games Committee Chairperson:** Jason Parris
6. **International Affairs Chair:** Andrew Badaloo
7. **Law Rep/Constitutional Chair:** Mikhail Jackson
8. **Medical Science:** Shabier St. John
9. **Pure and Applied Science:** Danielle Kirton
10. **Social Science:** Shontelle Greenidge
11. **Humanities Rep:** Andre' Layne
12. **Post Grad Rep:** Geoffrey Mapp
13. **Part Time Rep:** Seth Carrington
14. **Frank Worrell Rep:** Kezron Walters
15. **Sherlock Hall Rep:** Darren Moore-Sampson
16. **Librarian:** Dionne Danielle
17. **Returning Officer:** John Clarke

GLOSSARY

Definitions

The following words, phrases and abbreviations appear in this Code and are defined as:

1. "**Active Campaigning**" shall mean distribution of campaign materials.

2. "**Committee**" shall mean an independent contractor entity that will serve as the Elections Committee for the Guild. By independent contractor entity we mean that the committee does not take direct orders from the Guild Council.

3. "**Annual General Election**" shall mean the annual election of the Guild Council held in the Second Semester of each year.

4. "**Guild**" shall mean the Guild of Students, which is a non-profit public benefit corporation.

5. "**Guild President**" shall mean the current president of Guild.

6. "**Council**" shall mean the Guild Council

7. "**Guild Constitution**" shall mean the currently ratified copy of the Student Constitution.

8. "**Campaigning**" shall mean distributing printed matter (except for editorial material in student publications such as the Cave during the campaign period), publishing paid political ads in student publications, making public speeches, displays or demonstrations in support of or in opposition to any candidate or any ballot measure.

9. **"Campaign material"** shall be defined as any material that promotes or opposes the election of a candidate or any election referendum/initiative. This includes, but is not limited to, signs, badges, posters, tee shirts, flyers, balloons, etc.

10. "**Candidate**" shall mean a student who has been deemed eligible and notified of such by the Guild Returning Officer.

11. "**Code**" shall mean this Elections Code.

12. "**Committee**" shall mean the Elections Complaint Committee.

13. "**UWI**" shall mean University of the West Indies, Cave Hill.

14. "**Election"** shall mean General Election unless context dictates otherwise.

15. "**Final decision or order**" shall mean a decision or order that cannot be appealed.

16. **"GRO"** shall mean the Guild Returning Officer

17. "**Interested person**" shall mean any member of the Guild student body, faculty, staff or administration.

18. **"Interested Student"** shall mean the student who takes, or is given specific accountability for, the management of an elections campaign that involves an election referendum or initiative as set forth in this Elections Code.

19. "**Officer**" shall mean an officer of the Council.

20. "**Official ballot**" shall mean a ballot obtained, marked and cast by a student voter after registering to vote at a polling place during an election.

21. "**OSS**" shall mean the Office of Student Services.

22. **"Previously owned material"** shall mean materials purchased prior to the Election Packet filing deadline.

23. "**Sample Ballot**" shall mean a copy or facsimile (written or electronic) of a ballot containing the names of candidates and other measures, if any, which will appear on the official ballot. Sample ballots are not to be cast or counted.

24. **"Sign"** shall mean any type of attached support posts. A double-sided A-frame sign constitutes one sign.

25. "**The Cave**" shall mean the principal UWI campus newspaper edited by students and circulated on the UWI campus.

26. "**Student**" shall mean a current, regularly enrolled Guild student registered at UWI in at least one course for credit, excluding Open University and any extension course.

27. "**Supporter"** shall mean a student or organisation who actively supports the candidacy of a individual or initiative.

28. **"Verbal campaigning"** shall mean persuasive speaking to prospective voters that promotes the election of a candidate.

Article I. ELECTION CODE AUTHORITY AND INTENT

A. <u>Authority</u>

1. For the avoidance of all doubt, this Code derives its validity from **Statute 38 (2), and Ordinance No. 1** of the Charter of the University.

2. For the avoidance of all doubt, any section of this document that seemingly offends the constitution is still valid by virtue of **Section 17 (3) and (5) of the revised Guild Constitution, ratified Sept 2009**.

B. Purpose/Objectives of the Code

3. The purpose of the Election Code is to provide for the conduct and control of all elections held under the jurisdiction of the University of the West Indies (UWI), Cave Hill Campus Guild of Students Electoral Office.

4. The objective of this code are:

   i. To prescribe basic election rules, procedures and other guidelines from the filing of certificate of candidacy to the settlement of post-elections protests.

   ii. To provide safeguards designed to ensure orderly and properly coordinated elections.

   iii. To ensure that real and basic issues in elections are clarified.

   iv. To define the qualifications of electors and candidates for elective positions.

   v. To define the creation, compositions and functions of various sub-committees of the Guild Committee on Elections.

C. Scope

5. This code shall be the binding document for all elections held on Cave Hill Campus.

6. It is binding in as so far as it is compatible with the constitution of the respective clubs, island associations and halls of accommodation.

D. Applicability

7. Where time is of the essence (example bye-elections) the GRO has the right to reset time-lines giving due consideration to the intent of the framers of this document.

Article II GUILD COMMITTEE ON ELECTIONS

1. Creation of the Guild Committee on Elections
There shall be an Electoral Board, which shall be called the Guild Committee On Election, which hereinafter shall be referred to as the GCE. The GCE shall be independent and autonomous.

2. Compositions of the Guild Commission on Elections
The GCE shall be created by the incumbent Returning Officer on or before the month of August. The guidelines of the GCE shall be formulated by the incumbent RO. The GCE shall be composed of one chairperson and at least (8) members with an OSS Rep.

3. Powers of the GCE
The GCE is responsible for all Guild Elections, Re-Call Petitions, Referendums, and General/Special Meeting Voting (including constitutional reform).

4. Qualification of Members of the GCE
The Chairperson and the members? of the GCE must meet the following qualifications:
   a) Must have been a student of UWI for at least one year immediately preceding his appointment;
   b) Must have not been found guilty of committing any major offence;
   c) Must not be an active supporter of a candidate in the upcoming elections.

5. Office of Student Services Representative (OSS Rep.)
   a) The GCE shall have an adviser from UWI who is a permanent member of staff.
   b) The OSS Rep shall be appointed by the Director of the Office of Student Services.
   C) The OSS Rep. shall have no voting power in the meeting of the Committee.

6. Grounds for Removal of Members of the GCE
The RO and members of the GCE may be removed from office on the following grounds:
   a) Inability to perform his/her official functions
   b) Failure to attend (3) consecutive regular GCE meetings
   c) Commission of a major offence
   d) Verified affiliation to any candidate
   e) Culpable violation of the Guild Constitution and this Code
   f) Malversation of funds
   g) Graft and Corruption
   h) Inability to enrol during his/her term
   i) Conviction of any Criminal offence by a regular court
   j) Or any other grounds the committee may from time to time deem necessary.

7. Resolutions for Removal
A resolution for disqualifying the Chairperson or member of the GCE shall be signed by the other members. Such resolution should be proposed by the Chairperson or any member of the GCE through his/her initiative or upon verified compliant. The required vote is simple majority. No Commissioner can be removed by the Guild Council.

8. Vacancy

Vacancy in any GEO position (except RO) may occur due to the following situations:

a) Violation of grounds stated on Article II, Part. E of this code.
b) Resignation

In case of vacancy in any position in the GCE, the GCE shall make the resolution that a vacancy exists and notice thereof shall be given to the Returning Officer. The resolution shall specify the grounds for the declaration of vacancy.

The GCE shall sit and, by a majority vote, decide who shall fill the vacant position.

Article III. DUTIES AND RESPONSIBILITIES

A. *Duties of Guild Electoral Office*

The Guild Electoral Office ("GEO") shall:

1. The Guild Committee on Election shall have the authority to employ an Electoral Office who will be headed by a Director of Election and which is directly responsible to the GCE on all electoral matters.
2. Have the responsibility to plan and conduct all General/Bye Elections held under the authority of the Guild.
3. Maintain accurate and complete records for annual General/Bye-Elections, including but not limited to:
   a) Names of candidates seeking each office;
   b) All eligible votes cast and voter registration data;
4. Work in conjunction with Registrar of Admissions to determine the eligible voter pool. This must be done in compliance with the constitution.
5. Employ (and dismiss) Election Workers: Deputy Returning Officer, Faculty Supervisors, Electoral Officers and Ballot Counters.
6. Disburse and receive forms necessary to run for office including all forms in the official Elections Packet.
7. Ensure forms are available to all students, not just those running for office.
8. Notify the Director of Student Services or his or her assignee of any temporary closing of the polling locations immediately.
9. Perform all its duties in order to uphold the fairness and impartiality of the elections process.
10. Ensure the development and distribution of the Voter Booklet, which shall be available no later than ten (10) academic days prior to the election.
11. Organize candidates' forums so that such forums are accessible to students.
12. Publicize and promote student elections to maximize voter turnout.

B. Duties of Guild Returning Officer (RO)

The Guild Returning Officer shall:

1. Approve the dates on which the annual General/Bye-Election shall be held. The Guild RO shall also approve the dates during which the filing for candidacy period shall be held in accordance with the requirements of this Code. The RO shall announce the filing period and voting dates.

2. Appoint student members to the Election Complaint Committee and make recommendations to the Guild Council for appointment to Student Court.

3.Ensure the development and distribution of Election Packet.

4.Announce the names of candidates and the positions that they seek.

5. Provide workshops for the candidates, whose attendance is mandatory prior to the deadline for filing Elections Packets. Workshops should include but not be limited to a discussion of the Elections Packet, including required materials and the applicable deadlines, the responsibility of the office, and ideas on possible fund-raising for the candidate's campaign.

7. Notify candidates of eligibility.

8. Within thirty (30) minutes of the receipt of the election results, provide a public announcement. Election results shall be printed and signed by the Guild Returning Officer and the Electoral and Boundaries Commission of Barbados representative or any other nominee appointed by the GRO and posted in the Guild Office, on the Guild/UWI website, and in all other locations as the Returning Officer may determine upon completion of results.

10. Announce to the public any complaints and/or Election Complaint and

Student Court decisions.

C. Duties of Guild Council

The Guild Council shall:

1. Approve any revisions to the Elections Code by a two-thirds (2/3) majority vote at least thirty (30) days prior to the filing deadline.
2. Appoint members to the Student Court if there is a vacancy.

D. Duties of Guild Treasurer and Finance Committee

In light of maintaining the independence and autonomy of the Electoral Office the Finance Committee of the Guild Shall:

1. Reserve at least 1% of Guild Fees for the Election in light of the fact that members of the Finance Committee may be candidates in the said election they are financing.
2. Disburse, in a timely manner, the Electoral Office's budget.
3. Outline to the Electoral Office the procedure for paying Election Workers.
4. Finance all bye-elections, referendums and petitions from its contingency fund

E. Duties of Guild President

The Office of Guild President shall:

1. Table the Election Report received from the Electoral Office at the next Guild Council meeting for discussion..
2. Assist the Electoral Office in maintaining independence and autonomy over its affairs and shall in so far as practical ensure that the decisions of the Electoral Complaint Committee and Student Court are enforced.

F. Duties of Office of Student Services Rep.

The Office of Student Services ("OSS") shall:

1. Perform all its duties in order to uphold the fairness and impartiality of the Elections process
2. Maintain liaison between GCE and the administration.
3. Be responsible for the oversight of the activities of the Elections Complaint Committee
4. Act as Registrar/bailiff of the Student Court.
5. Maintain close relations with the GCE and work in accordance with the goals and principles of the Committee.

Article IV ELECTIVE POSITIONS

Part A: Composition of the Guild

1. The Elected Positions on the Guild are as follows:

(1)The President;
(2) Vice-President;
(3) Guild Secretary;
(4) Guild Treasurer;
(5) Union Committee Chairperson;
(6) Games Committee Chairperson;
(7) Publications Committee Chairperson;
(8) International Affairs Chairperson;
(9) National Affairs Chairperson;
(10-14) Faculty Representatives [Law, Humanities, Pure and Applied Sciences, Social Science, Medical Science];
(15-16) Hall Representatives [Frank Worrell and Philip Sherlock];
(18) Postgraduate Rep;
(19) Off-Campus Representative; and
(20) Part Time Representative;
All shall be elected by secret ballot.

2. Only Full Members of the Guild as defined by **Article 11(1) of** the constitution shall be eligible for nomination.

Part B: and Re-Open Nominations (RON)

1. Re-Open Nominations (RON) shall be a candidate in all Guild elections.

2. In the event that there is only one candidate for a post, the race shall be between RON and the Candidate. Re-Open Nomination therefore shall replace Vote of No-Confidence as the option that appears on ballots for candidates running in a one horse race.

3. In the event that there are multiple candidates, the race shall be between all candidates and RON.

Article V. PRE-ELECTIONS PROCEDURES

A. <u>Announcement of Election Timetable</u>

The Annual General Election shall observe the following schedule:

1. The Guild RO shall announce the dates of the filing period and the dates of the annual General Election no later than twenty- one (21) calendar days after the start of the Second Semester.

2. The filing period shall be announced:
at least ten (10) calendar days prior to the start of the filing period.

i. The filing deadline shall not be less than thirty (30) days before election.

ii. The filing period shall last for not less than fourteen (14) calendar days.

3. Voting dates and polling locations shall be announced to the campus community beginning no less than twenty (20) calendar days prior to start of the first day of voting.

4. The aforementioned timelines need not be applied for bye-elections, however, the GEO should bear them in mind when creating its own timelines.

B Sample Ballots

5. Sample Ballots showing the formats and contents of official ballots shall be available for examination on the Guild/UWI website at least five (5) academic days prior to the election. Sample ballots will be available at the Student Union.

6. No candidate can withdraw from the race after the sample ballot is produced

Article VI.CANDIDACY REQUIREMENTS

A. Residency and Constitutional Requirements

1. Candidates must meet qualifications as described in the Guild Constitution in order to be an eligible candidate. Candidates running to represent a certain constituency (example Halls, Faculty, Part-time or Off-Campus Rep) must be a member of that group. Determination of whether a candidate has met said qualifications will be made by the GEO.

2. There are three eligibility determination periods for which a candidate must be eligible in order to serve in office:

   a. Prior to the beginning of campaigning, a student must be deemed eligible by the GEO in order to be an eligible candidate;

   b. Prior to taking office, a student must be deemed eligible by the GEO on the date prescribed to take office in order to assume the office.

   c. After the completion of the first semester of the academic year, a student must still be eligible according to the requirements set by the Guild Constitution to continue in office.

3. Students who are appointed to an office must have been able to meet all eligibility requirements (except filing candidate materials) at each of the previous determination periods in order to be appointed to office, as required by the Guild Constitutions.

A. Filing for Candidacy

1. To file for candidacy, each applicant must obtain a current Elections Packet from the Electoral Office, then complete and return all required materials as listed on the form "Required

Application Materials" to the place designated by the Returning Officer.

2. No handwritten additions shall be considered. Failure to submit any of the materials on the form "Required Application Materials" on time will result in disqualification.

3. Each applicant will receive a copy of the signed Form as a receipt. This form shall serve as proof of receipt of the Packet, but not completion or eligibility. The original form will be kept in the applicant's file and will be the official document that will control in any dispute.

4. The contents of the Elections Packet shall include at a minimum the following:

Due at the time the Election Packet is received:

1. An Application for Candidacy/Election Packet Receipt Form;

2. A "Required Application Materials" Form;

Due when the Packet is turned in, no later than the final filing date:

3. A Letter of Intent to Run for Office Form;

4. An Authorization for Information Release Form

5. Elections Complaint Resolution Agreement Form;

6. Candidates shall produce a manifesto of no longer than 250 words, a Digital photograph that must be a true likeness of the nominee, (must be sent electronically to **guildelections@mycavehill.uwi. edu** no later than midnight on the final filing date.)

Due no later than 12:00 noon on the day before AND once more after the election (the RO can demand to see a copy of this report, before this time once the EO has grounds to believe that a candidate is breaching the Expenditure Cap):

7. Campaign Expenditure Report Form

Due if the Election Complaint is being filed, no later than the final filing date for election complaints:

9. Guild Elections Complaint Form

Provided as information for candidates:

10. Guild Constitution
11. Guild Election Code
12. Fair Hearing Plan (Appendix I of Election Code)
13. Policy for Qualifications for Student Office Holders
14. Publicity and Posting Policy
15. Schedule of election dates
16. A request to use facilities form

A candidate will NOT be considered eligible until he or she has been informed of

eligibility by the Guild Returning Officer following verification of completion of all candidacy requirements.

C. Candidate Workshops

1. Candidate Workshops are mandatory for all candidates after the deadline for filing Elections Packets.
2. Failure to attend a mandatory workshop will result in disqualification.
3. If a candidate is unable to meet during scheduled times, the candidate may contact the Returning Officer for special arrangements.
4. Candidates will only be posted as eligible to campaign when the workshop is completed and all other requirements are met.

D. Official Timepiece for Filing Deadlines

1. The official timepiece for filing deadlines shall be the telephone time display in the room where Elections Packets are accepted for filing with the Electoral Office.
2. No material can be accepted after the time for its filing has expired.
3. To file for candidacy, all materials specified on the form "Required Application Materials" must be received by the Electoral Office no later than 8:00 pm Local Time on the specified closing date for filing for candidacy or an election.

E. Complying with Filing Requirements

1. Failure to complete any filing requirement or eligibility requirement shall result in disqualification.

2. No student may file for more than one (1) guild elective position in an election.

F. Withdrawal

1. Within five (5) hours after the filing period all withdrawals must be submitted to the GEO.
2. The candidate must meet with the GEO to state his/her reason for withdrawal.
3. The GEO has the right to after reviewing the withdrawals to re-open nominations to given other students a chance to submit their nominations.
4. In the event of a filing deadline no campaigning shall begin until the end of the new deadline.

G. Campaign team

1. Each candidate shall register the name of his or her campaign manager(s) at the time of filing. Any change thereof must be documented to the GEO within twelve (12) hours of getting a new campaign manager.

2. The Candidate is also responsible for naming a contact person in each faculty within four (4) days after filing. Any change thereof must be documented to the GEO within twelve (12) hours of the change.

3. The actions of members of a candidates campaign team will be viewed as his/her own actions and he/she will bear such penalty as the election complaint committee decides.

Article VII. INITIATIVES/RECALLS/REFERENDA/Bye- ELECTIONS/ELECTION/RERUNS

A Guild Council

Responsibilities, procedures, and time lines for conducting initiatives, recalls, referenda, bye-elections or election reruns shall be determined and established by the Guild Council. Such determinations shall be compatible with provisions of this Elections Code and the Guild Constitution.

B. Qualifying Valid Language

1. Initiatives, Referendums and Recalls, other than fee changes, may be placed on the ballot either by the Guild Council or by any student that has qualified the referendum or recall by gathering the constitutional required number of signatures.

2. Ballot Language

a. In the case of the Guild Council when the Guild Council votes to place said information on the ballot, specific ballot language must be brought before the Guild Council and voted on and the Guild Council will vote on the exact language that will be placed on the ballot.

b. In the case of a student petition, the students desiring to place ballot language on the ballot must register the specific ballot language with the GEO.

c. Registration must be submitted ten (10) academic days prior to gathering any signatures. The GRO will notify the student of the acceptance of the

or of modifications to be made within ten (10) academic days of registration. The approved language must be carried by those students gathering signatures and made available to all students. Students signing the petition must include their name and other evidence that the student is a member of the Guild of Students.

3. Upon qualification of Valid Language, Initiatives and Referendums will be assigned a number. Numbers will be assigned in the order that they are qualified. The numbering shall start with number One (1) and be cumulative over the given academic year.

C. Voter Booklet

The voter booklet will be made available to all people eligible to vote in a Guild general or

bye-election.

The voter booklet will include candidate statement as well as the ballot initiative, objective analysis from each side stating why it is or is not needed and the impact it will have. It will also include statements of support or opposition submitted by the prescribed deadline to Electoral from campus groups, organizations and individuals. The form and length of each section will be determined by Returning Officer.

After the ballot measure has been qualified and at least twenty-eight (28) calendar days before the election, the body responsible for qualifying this initiative must advertise in the campus newspaper and put out flyers to all clubs and organizations explaining their ballot measure and what it hopes to accomplish through it. In the advertisement and flyer, they must also indicate that anyone wishing to submit statements for or against the proposal must submit these statements to the OGA no less than twenty- one (21) calendar days prior to the election via email attachments. The statements may be no longer than two hundred-fifty (250) words. A contact person and their contact information must be included with the statements.
Each voter booklet shall contain the following statement: "Any person who has a right to vote in this election may also file a complaint as outlined in the Elections Code and Fair Hearing Plan, which are available on the Guild website and in the Guild Office."

Any summary of the proposed action included in the voter booklet should be brief and limited in scope to clarification of the meaning and intent of the referendum language. The objective analysis of the referendum shall include the benefits and liabilities of both passage and defeat of the referendum. Pro and con statements may be no longer than two hundred- fifty (250) words. All statements should be submitted containing only upper/lower case, numbers and standard punctuation. Use of bold face and underline is allowed. However, Italics, graphics, stars, bullets and other symbols are prohibited. The formatting of the text is at the discretion of OGA, with all statements being set in the same typeface and font. Once submitted, a statement can only be changed for spelling, grammar and factual accuracy, and only with the approval of the submitter.

In addition to the objective analysis and the summary of the proposed referendum, the pamphlet shall include statements for and against the referendum, which are solicited from the student body. Statements shall be no longer than two hundred-fifty (250) words. Notices shall be placed in the Cave soliciting statements for and statements against the proposed referendum.

The Guild Council shall be responsible for printing all statements for and all statements against the proposed referendum from those duly submitted.

Once a statement for or against a referendum/candidate has been submitted to and received by GRO, its contents shall not be edited or changed.

The voter booklet must be printed and have the ability to be accessed online.

Copies of the voter booklet and ballot information regarding dates, times and polling locations shall be available to students and published on the Guild web site at least ten (10) calendar days

prior to the election. Distribution of the voter booklet prior to the election shall be in locations determined by GRO.

Article VIII. FAIR CAMPAIGNING AND PUBLICITY

1. Candidates and students seeking to place a referendum or initiative on the ballot for an election ("Interested Students") shall be responsible for complying with all provisions of this Elections Code, including those pertaining to the conduct of their campaigns and campaign workers.

2. Candidates are required to submit to the GEO a list of all their Managers, Agents and Campaign Affiliates. Failure to present this list shall be deemed as a withdrawal from the election. Candidates and their affiliates are bound by all election rules. Actions of candidates' affiliates shall be deemed as candidate's action.

3. Violation of any provision of the Elections Code by the candidates or their campaigns or campaign workers or by Interested Students shall be grounds for the Election Complaint Committee to order remedies as provided in this Elections Code.

A. Campaign Period

1. Neither candidates nor Interested Students may begin campaigning until after receipt of notification of eligibility. Notification of eligibility will be made by the Guild Returning Officer.
2. The campaign period is set by the GEO. It however may begin no sooner than thirty (30) calendar days before the first day of voting.

B. Areas in Which Campaigning is Prohibited

1. All candidates and Interested Students shall conduct their campaign in accordance with the provisions of the Elections Code and any university, national policies, laws, ordinances or regulations.

2. Harassment, as defined within this section, is prohibited. This includes verbal, written (printed or electronic) and/or physical abuse by any candidate or Interested Student.

3. The operation location for the GEO is off limit to all candidates including current guild councillors seeking another term on the council. Candidates can only enter this location with prior approval of a member of the GEO.

4. Candidates who are current Guild Councillors cannot utilize their guild office for electoral advantage. This restriction includes a ban from making campaign-related calls from their guild phones. Any attempt to do so will be met with an immediate disqualification.

5. If the activity is not discovered until after the councillor has assumed office, the councillor will be required, once this is proven, to resign forthwith. Failure to do so, will be met with a dishonourable discharge from office by the GRO who shall declare the seat vacant.

C. Advertising or campaigning

1. Advertising or campaigning, which is libellous or slanderous, is prohibited. Any violation of this Section will result in disqualification, unless it can be shown that the candidate or Interested Student was not aware of the violation and did not condone the violation, in which case the Elections Complaint Committee will fashion an adequate remedy.

2. Advertising or campaigning that endangers persons is not permitted.

3. Regulations and classifications of publicity for campus elections shall be found within this Article of the Elections Code.

   a. No active or verbal campaigning shall occur within fifty (50) feet of an official Guild polling place while that polling place is open for voting. Any violation of this section will result in disqualification, unless it can be shown that the candidate or Interested Student was not aware of the violation and did not condone the violation, in which case the Elections Complaint Committee will fashion an adequate remedy.

   b. No election materials (except those issued by the GEO) shall be worn by any person having anything to do with the running of the election, counting of ballots, working at the polls, or working in an election area.

   c. There shall be no advertising or campaigning that interferes with classroom instruction without the consent of the professor or instructor.

   d. There shall be no campaigning in the Guild Office (meaning upstairs the Guild). It will result in disqualification, unless it can be shown that the candidate was not aware of the violation and did not condone the violation, in which case the Elections Complaint Committee will fashion an adequate remedy.

   e. Each candidate is allowed any combination of posted signs or banners.
      i. Height shall be measured from the top of the sign to the ground. Length shall be measured from the left of the sign to the right. Anything touching the sign or supporting the sign shall be included in the measurement.
      ii. Posted sign or banner shall mean any stationary sign. Carried signs or banners are not included in this section. Signs posted

on kiosks or bulletin boards established by GUILD shall not be included in this section.

g. No publications of materials for campaigning should be placed in such a way that it covers any publication done by the GEO or Administration, Guild Council or another candidate.

h. Materials published that are against UWI's code may result in the Candidate being disqualified. Material, such as, but not limited to biases based on nationality, gender, religion, etc.

i. All campaign paraphernalia must be removed by 12am on the day of the election.

j. Guild resources, materials, websites, or logos shall not be used in any campaign materials.

6. Misrepresentation in advertising or campaigning is prohibited.

7. A copy of all posters for guild elections MUST be submitted to the GRO before being posted. This is to ensure the GEO has copy of material to ensure it does not breach this section. Emailing material(s) to *guildelections@mycavehill.uwi.edu* shall satisfy this requirement.

D. Identification of Campaign Materials

1. All campaign literature, leaflets and other materials must bear the name of the candidate, organization, Interested Student or other individual responsible for the contents and distribution of that campaign material.

2. The name of the candidate who is taking ownership of the promotional item on their expenditure report must be visible to the constituents.

3. Names that are discretely displayed in a manner, such as on the back of buttons or on the tags of clothing, is to be deemed non-visible to constituents.

4. All campaign material must show in the bottom right hand corner the words "paid for by[here the name of the payee should be inserted]"

E. Campaign Interference Prohibited

1. No candidate, organization, Interested Student or individual shall interfere with the campaign of another candidate.

2. Interference includes, but is not limited to, unauthorized removal of campaign posters, banners, or other materials, or other disruption of campaign activity.

3. Any violation of this section will result in disqualification, unless it can be shown that the candidate or Interested Student was not aware of the violation and did not condone the violation, in which case the Elections Complaint Committee will fashion an adequate remedy.

F. Endorsements

1. In any given year, Elections Complaint Committee and Student Court (as a body) shall be prohibited from endorsing any candidate running for office. For the purposes of this section, endorse shall mean any showing of support for a particular candidate, whether verbal, written (electronically or in print), active appearance at events, or in any other form.

2. It is the policy of the Guild to operate an "even playing field" on referenda or initiatives that are placed before students for a vote. This policy means that the Guild can take formal positions on elections concerning a referendum or an initiative but it shall not allocate funding to support or oppose a position in such election unless an equal amount of funds are allocated to both sides of the issue.

3. Before a candidate or Interested Student can claim endorsement from any individual or organization, they must turn in a signed letter on behalf of their endorser to the RO.

Article IX CAMPAIGN EXPENDITURE LIMIT

1. The candidate or Interested Student shall be required to turn in personally to the GEO a Campaign Expenditure Form listing all his/her campaign expenses.

2. This form must be received by GEO by 12:00 pm local Time on the day set for elections and on 12:00pm on the day of the election.

3. This statement must be time- stamped to be considered "turned in."

4. Failure to submit a campaign finance statement and all required materials shall be a violation of this Elections Code and shall result in immediate disqualification.

5. The Campaign Expenditure Form shall include:

   a. The receipts of all items purchased. These shall include the name and telephone number of the seller.
   b. A listing of all gifts, donations, and/or rental materials and their retail value.
   c. All professional labour costs. Professional labour in this part shall mean any labour performed by a person who has specialized training to perform such labour and does carry on or has carried on such labour in their pursuit of a job or career.
   d. Newspaper ads and classifieds, which promote a candidate or position on a referendum/initiative, unless it can be shown that the candidate or Interested Student did not consent to the placement.
   e. Written estimates showing retail value for any donated items and/or services without a receipt must also be attached.

1. Receipts for all materials purchased should show actual amount paid for such items as well as any discount (except those available to the public at large). Such discounts (except those available to the public at large) shall be counted as a gift or donation. Failure to provide receipts as provided in this part for all purchased items is a violation of this Election Code.

2. An itemized campaign expense statement shall be required of all candidates and Interested Students regardless of the amount of money spent, even if no money is spent.

3. If a candidate or Interested Student receives any gifts, discounts and/or donations, retail cost shall be counted in the candidate's or Interested Student's Campaign Expenditure Form.

4. A candidate running for an Executive position (President, VP, Tres, Sec, [campus wide position]) shall be allowed to spend a maximum total of $4,000.00. This total shall include all contributions, gifts, discounts and/or donations by individuals, businesses and/or organizations, including the candidate.

5. A candidate running for any other Council position shall be allowed to spend a maximum total of $2,500.00. This total shall include all contributions, gifts, discounts and/or donations by individuals, businesses and/or organizations including the candidate.

6. Neither candidates nor Interested Students will be allowed to combine their individual spending limits with other candidates. This includes the purchase of materials for use by multiple candidates.

7. For elections involving a referendum or initiative, the Guild may set spending limits on Interested Students or the campaign. In no event shall Guild funds be used to support or oppose a referendum or initiative unless an equal amount of funds are allocated to both sides of the issue. This restriction applies to any club or society who receives guild subvention.

8. Only one candidate per promotional item will be allowed.

9. The retail value of all gifts, discounts and/or donations and previously owned material shall be determined by getting the cost from two (2) retail outlets (other than the place where the item was purchased) and averaging them. This cost study shall include the name, address, and phone number of companies contacted and shall be included in the Campaign Expenditure Form.

10. All professional labour related to the candidate's or Interested Student's campaign, including material that was produced prior to the election, must be considered a gift, discount and/or donation and must be computed at its fair market value. Volunteer promotion work need not be included in the campaign statement.

Article X CANDIDATE DEBATES

1. Participation in Candidates debates in mandatory for all candidates
2. The date for candidate debate will be determined by the GRO
3. Candidates are required to be at the venue for the debates at least one hour [or any time set by the GRO] before the debate and should remain there until they have debated. Failure to fulfil this requirement shall be deemed an act of withdrawal.
4. The schedule for the debate shall be determined by the GEO or its designee.
5. The format and rules of the debates shall be determined by the GEO.

Article XI. ELECTIONS AND VOTING

A. Time of Annual General Elections

1. There shall be one (1) Annual General Election per academic year, to be a maximum of two (2) consecutive days during a week in April on Tuesday and Wednesday.

2. The Annual General Election should be scheduled to avoid conflicting with other major campus events to the extent possible.

B. Voting Hours for Annual General Election

1. Voting hours should be at least between the hours of 8:00 a.m. until 8:00 p.m.

2. The Returning Officer has the discretion to extend the voting hours in any polling station where he sees that this will ensure that the voters are not disenfranchised.

C. Information at Polling Stations and Online

1. If requested, workers at Polling Stations shall make available the following information:

a. Name and telephone number of the Committee and phone number of campus security;
b. Date and hours of operation;
c. Current copy of the Elections Code;
d. List of disqualified and withdrawn candidates posted by the GRO.
e. Voter Booklet.

2. All Official Guild Polling Stations shall be identified as such.

D. Temporary Closure of a Polling Station

1. A polling station may be temporarily closed by the GRO if there is reason to believe that an Elections Code violation or technical problem warranting a temporary closure has occurred.
2. If the violation or technical problem is correctable, the polling station may be declared reopened by the Committee.
3. In the event that the violation or technical problem is not immediately correctable, the station may remain closed until the violation or technical problem is corrected.
4. Any closures should be reported to OSS Representative.
5. The GEO will determine if voting time will be extended to make up for this temporary closure of the polling station. In seeking to extend the time to determinative factor will be that

students should not be disenfranchised.

E. Voter's Right

1. The Electorate shall consist of all currently regularly enrolled students at UWI Cave Hill Campus. Both undergraduate and graduate students are eligible to vote.

2. Candidates and their assignees **CAN** campaign on election day. The GRO will outline the procedure and limitation for the campaign on election day.

F. One Person, One Vote

1. Elections, recalls or referenda

   Each student shall be allowed one (1) vote for each initiative, recall or referendum placed on a ballot.

2. Each student shall be allowed one (1) vote for each of the vacant executive positions (all campus wide position).

3. Students with more than one (1) declared major shall be eligible to vote for only one academic academic representative, regardless if the majors are within separate faculties.

G. No Proxy Voting

1. No student shall vote by proxy in General Elections.

2. Any visually or physically challenged voter who requires assistance in voting may have a person of his or her own choosing assist him or her with the voting process.

H. Write-in Candidates

1. Votes for write-in candidates shall not be permitted and shall not be counted.

I. Ballot

1. Voting shall be by secret ballot. The Committee may use a method to verify eligibility of voters if the system assures the secret nature of the ballot.

2. The order of candidates' names for each office on the ballot shall be alphabetical.

K. Integrity of Election

1. The GEO is empowered to utilize any system that ensures the integrity of the voting process including the distributing, casting, and securing of ballots.

Article XII. BALLOT COUNTING AND ELECTION RESULTS

A. Appointing Observers

1. The Returning Officer shall inform the candidates of the time and venue of the count.

2. Candidates shall forward to the GRO a list of proposed representative to observe the counting process at 12 pm five days before the election.

3. Failure to present such a list will result in candidate losing the right to have a representative present at such meeting.

4. All observers will be invited to a meeting by the GEO to discuss their role and the procedure for counting votes at least one (1) day before the election.

5. The candidate's appointed representative may attend the counting as observers only.

1. Access to the Ballots

6. Only personnel appointed by the GEO shall have access to official ballots at any time during the voting process.

7. Ballots shall be counted immediately following the close of the voting period.

8. The Committee shall utilize a system that will ensure accountability of the tabulating process.

2. Ballot Papers which shall be rejected and therefore not counted

9. Blank votes on specific issues or candidates do not count as a vote cast

10. Ballot paper on specific issues or candidates shall be rejected as invalid on any one of the following grounds:
    a. Want of official mark;
    b. Voting for more than one candidates or issue;
    c. Writing or mark on ballot paper by which the voter could be identified
    d. Void for uncertainty on whom the voter intends to vote for.

11. Since a return has to be made showing the number of ballot papers rejected on each of the above grounds, such ballot paper should be grouped and placed in clearly labelled packets.

12. Subject to the secrecy of the ballot paper being at all times maintained a candidate or his agent (in the final ballot count) has the right to be allowed to examine the ballot so that he may be enabled to raise any objection, if he wishes to do so.

13. As soon as the GRO, or his assignee rejects any ballot paper, he shall endorse on it the word "rejected". If any candidate or agent objects to the GRO's ruling that a ballot paper shall be rejected, as being invalid, the GRO shall add a further endorsement "rejection objected to".

14. The decision of the GRO as to any question arising to any ballot paper shall be final, subject to reversal by decision of the Electoral Complaints Committee or Student Court.

C. Preliminary Results

15. The GRO shall announce the preliminary results of the vote, on Election night.

D. Official Results

16. Within at least two days of the release of the preliminary results, the Electoral Office shall conduct a final count of the ballot. During this process, all candidates and their representative will have the right to examine each ballot.

17. A list of the official successful candidates will normally be posted within 1 academic day of the declaration of results.

18. The results will become official 48 hours after they have been posted provided that no complaint has been lodged with the Returning Officer within 48 hours. In the event of a complaint being received by the Returning Officer the results shall be suspended until the complaint has been resolved.

19. After certification of results, the Returning Officer shall make available copies of the results as well as an Election Report to the Guild Council, the Campus Principal, Office of Student Services and any other University Personnel the Electoral Office believes should receive a copy.

Article XIII. ELECTIONS COMPLAINT COMMITTEE

A. Authority and Jurisdiction

1. The Elections Complaint Committee shall have original jurisdiction to hear and rule on all complaints of violations of this Elections Code or any other election conducted on Cave Hill Campus.

B. Appointment and Terms of Committee Members

1. The Committee shall consist of three (3) student members appointed by the GEO. The Committee shall also include one faculty member chosen from a list of three recommended by the Faculty Representatives. A representative from the Office of Student Services and the Guild Returning Officer or designee, who shall act as Chair of the Committee.

2. Committee members are appointed for a one-year term.

3. The Elections Complaint Committee must be fully constituted by the end of the third week of the Christmas Semester and in no event later than seven (7) calendar days prior to the first day of filing in any Election.

4. A quorum of the Committee shall exist if a majority of the members of the Committee are present and eligible to vote.

C. Abstentions/Conflicts of Interest

1. Individual members of the Committee may abstain from voting on any issues where there is a conflict of interest. A conflict of interest is defined as having a personal benefit that is dependent on the outcome of the decision due to close association with the involved parties. In

the case that a member of the committee abstains from voting on a complaint, that member shall not be present for any deliberations of the committee regarding the matter abstained from which are not open to the public.

2. Members of the committee may decide to abstain on their own decision, or any of the parties may request that a member abstain from the decision. If a request is made, the member whose abstention is sought shall rule on the request. In the event that a request is denied, an appeal may be brought before the entire Committee within two (2) days of the denial. The remaining members of the Committee will vote on the request for abstention.

3. If three of the four remaining members vote for abstention, the request for abstention shall be granted and that member shall abstain from voting. The decision of the full committee may not be appealed.

4. The standard for determining whether a conflict of interest exists shall be whether a reasonable person who is informed of all the facts and circumstances believes that the member in question cannot cast an unbiased vote on the case.

5. In the event that a quorum of the Committee cannot be convened due to abstentions, the members of the Committee who have not abstained shall select members of the Guild Council who do not have a conflict of interest until a quorum exists. In the event that a quorum cannot be obtained by filling the seats with members of the Guild Council, the RO shall appoint sufficient students to sit on the Committee for resolution of the issue. The appointments by the Committee or the RO may not be appealed.

D. Grounds for Complaints

1. A complaint may be filed for a violation of any provision of this Code or the Guild Constitution. A complaint may also be filed on any other grounds that allege that one or more candidates or ballot measures in an election was unfairly aided or hindered.

E. Time and Place for Filing of Complaints

1. Complaints may be filed by any eligible voter.
2. Elections Complaints shall be filed with the RO any time from the start of the campaign period to the date five academic days (5) after the last voting.

F. Form and Contents of Complaint

1. Complaints shall be filed in writing on forms designated by the Elections Complaint Committee. Forms shall be made available in the Electoral Office by the filing deadline. Complaints submitted to the Committee shall specify:

(c) A request for a remedy or remedies.

G. Discretion of the Elections Complaint Committee to Hear Complaints

1. The GRO will forward all complaints to the Elections Complaint Committee.

2. The Committee will decide by if it has proper jurisdiction to hear the complaint.

3. If the Committee determines that the complaint cannot be heard for reason of lack of

jurisdiction, the RO will send a written notification by e-mail to the complainant within two (2) academic days of such determination.

H. Hearings Conducted by Elections Complaint Committee

1. All hearings conducted by the Elections Complaint Committee be in accordance with the Fair Hearing Plan attached as Appendix I of this Elections Code.

Article XIV. REMEDIES FOR COMPLAINTS

1. After a complaint hearing, the Elections Complaint Committee shall have the authority to order remedies and impose sanctions on sufficient proof of a complaint.

2. The Committee may:

A. Recommend specific revisions to this Elections Code.

B. Issue a reprimand of a candidate or other individual student if a violation of this Elections Code is proven.

Reprimand options:

1. Up to Five Hundred dollar ($500) fine paid to the Guild Resource Fund.
   i. A fined candidate who refuses to pay will be immediately disqualified.
   ii. A student who refuses to be fined will be reported to the OSS rep and ECC for issuance of an appropriate sanction.
2. Issue a formal letter of reprimand to the student, citing the offence, the committee has the option to publish this letter to the general student body.

C. Institute disciplinary action against one (1) or more candidates or individual students if a serious violation of this Elections Code or other serious misconduct (such as, but not limited to, interfering with the campaign of another candidate referendum/initiative campaign, intentionally misrepresenting the views, ideas or record of another candidate or referendum/initiative campaign, or engaging in campaign tactics that are personally humiliating or derogatory to another candidate or referendum/initiative campaign) is proven.

D. Disqualify a candidate from taking office if a very serious violation of this Elections Code or other very serious misconduct by that candidate is proven by clear and convincing evidence compiled in the hearing record.

E. Order a recount of ballots if doubt is cast on the results.

F. Order all or part of the election results invalidated and rerun, but only if clear and convincing evidence compiled in the hearing record proves that the outcome of the election was determined by the irregularity or other matter complained of.

G. Rule that the complaining party has failed to produce evidence warranting a remedy or sanction.

H.Rule that the complaint is without merit.

3. The Elections Complaint Committee has authority to take any other action or issue such other remedy that it finds suitable and appropriate to its findings, provided however, the authority of the Elections Complaint Committee to issue a remedy shall not extend to actions that are limited or prescribed by this Elections Code, the Constitution, UWI Policies or Procedures or otherwise limited by Barbadian law.

Article XV. APPEAL OF ELECTIONS COMPLAINT COMMITTEE ACTION

1. All decisions of the Elections Complaint Committee in relation to Article X: D,F G and H may be appealed to the Student Court that shall consist of the OSS rep or designee, a faculty member appointed by the UWI Faculty Reps, and one (1) students nominated by the Guild Council.

2. All decisions of the Elections Complaint Committee are final unless appealed in accordance with this section of the Elections Code.

A.Time and Place for Filing an Appeal

1. All appeals from actions of the Elections Complaint Committee must be filed with the GRO no later than 4:00 p.m. Local Time on the third academic day after the Committee issues its written decision, and the decision has been made public by the GRO.

2. If the Elections Complaint Committee fails to act within the ten (10) academic days after the final date of the hearing by the Elections Complaint Committee, the complaint is automatically referred to the Student Court for appeal.

B.Student Court Operating Procedures

1. The Student Court is governed by the operating procedures in the Fair Hearing Plan.

C.Finality of Student Court Decisions

1. Decisions of the Student Court are final and binding.

Article XVI. TRANSITION OF THE GUILD COUNCIL

A. Handing Over Date

1. On the day specified by Guild Constitution (April 15th), the individuals declared by the Committee as elected in the Annual General Election conducted during that same academic year shall assume the offices of Guild Councillors, if the individual has met the prescribed eligibility requirements to take office and has not been disqualified for any breach of electoral rules.

B. Vacancies created by disqualifying Officer(s)-elect

2. In the event that a candidate is disqualified by a final order of either the Elections Complaint Committee, the Student Court, or for any other reason, or if the candidate fails to meet any of the residency and academic requirements, or if the candidate refuses to take office, that office shall be assumed by the candidate who received the next highest number of votes in the election.

3. If the candidate with the second highest number of votes in the election is disqualified by a final order of either the Elections Complaint Committee, or the Student Court, or for any other reason, or if the candidate fails to meet any of the residency and academic requirements, or if the candidate refuses to take office, that office shall be assumed by the candidate who received the next highest number of votes in the election. This process shall continue until there are no eligible candidates to assume the office. If there are no eligible candidates to assume office, the office shall be considered vacant and shall be filled in accordance with Guild Bylaws. This succession rule only applies to seating of Board vacancies through the election process.

4. In the event that a candidate has been disqualified by an order of the Elections Complaint Committee, but that order has not become final because the time for filing an appeal has not ended, the candidate will assume the office.

C. Disqualifying a candidate who has taken office

5. In the event that an officer or director is disqualified by a final order after assuming the office, such assumption shall, upon the order becoming final, immediately be considered void and the office will be assumed by the candidate who received the next highest number of votes in the election.

6. If the candidate with the second highest number of votes in the election is disqualified by a final order of either the Elections Complaint Committee, or the Student Court, or for any other reason, or if the candidate fails to meet any of the residency and academic requirements, or if the candidate refuses to take office, that office shall be assumed by the candidate who received the next highest number of votes in the election.

7. This process shall continue until there are no eligible candidates to assume the office. If there are no eligible candidates to assume office, the office shall be considered vacant and shall be filled in accordance with Guild Constitution.

8. If it has been reported that an officer had breached a fundamental provision of the code and due to that breach was elected, the Student Court still has the power to deliberate on the matter and hand down a decision. This may include removing said councillor from office regardless of how long he/she has served.

9. This succession rule only applies to seating of Council vacancies through the election process. It does not apply for appointed post.

10. When the Elections Complaint Committee or Student Court has rendered a final decision with respect to the Election, all actions of the Guild President (or next in command) must be in full compliance with such decision. Failing this the GRO must report matter to council.

C. Oath of Office

11. The Guild President shall administer the Oath of Office.

12. If the incumbent Guild President is also the incoming Guild President, the Guild Oath of Office shall be administered by the next ranking Guild Councillor who was not a candidate in that election.

13. If all incumbent Guild Councillors were candidates, then the newly elected Guild Council shall be seated by a non-officer incumbent Guild Council member to be determined by alphabetical order of last names.

14. If all Guild Councillors were candidates, then the newly elected Guild Council shall be seated by a nominee of the Guild Council.

ARTICLE XVII: Amendments

1. The Election Code may be amended only by an affirmative vote of two-thirds of all Guild Council members, provided that the proposed amendments must be presented in writing at the previous meeting of the council and copies thereof be sent to all Council members at least two weeks prior to its consideration.

2. Any amendment to, or revision of this Code shall be valid when approved by the President of the Guild of Students.

Appendix I: FAIR HEARING PLAN

This Fair Hearing Plan governs the hearing and disposition of complaints under the Elections Code by the Guild Elections Complaint Committee ("Committee").

A. Conduct of Public Hearing of Complaints

1. Time in Which to Hold Hearing

Hearings shall be convened by the Committee within ten (10) academic days following receipt of an elections complaint in accordance with the provisions of the Elections Code.

2. Notice of Complaint Hearing

Notice of the time, place and date of the hearing shall be posted by the Guild Government Office on the bulletin board outside the Guild Office five (5) academic days before the hearing. A copy of the complaint including the remedies sought shall be posted at that location. Notice of the time, place and date for a public hearing of an election complaint shall be mailed first class postage paid by the Committee Chair five (5) academic days before the hearing to the persons named in the complaint.

3. Public Hearings

All Committee proceedings, except deliberations, preliminary planning sessions at which no action on complaints can be taken, and determinations of jurisdiction shall be open to the public.

4. Record of Hearing

a) At the beginning of the hearing, the Committee Chair shall identify the Committee members, including any abstentions, the complaints that will be heard at that time, the remedy sought in those complaints, and then briefly describe the hearing procedures and decision-making process.

b) The Committee shall make either a tape recording or stenographic record of oral statements made and questions asked at the hearing.

c) The Chair's assignee may operate the tape recording equipment, but the OSS Rep shall maintain custody of a copy of the tape recording after the hearing.

d) The records shall be kept for a period of at least one (1) year. During the course of the hearing, the Chair of the Committee shall require speakers to identify themselves and to briefly state their connection to or interest in the complaint.

e) Documents submitted in support of or opposition to a complaint shall be part of the

hearing record.

B. Presentation of Evidence

1. Testimony

Any complaining party or any witness may testify about his or her personal knowledge of facts that support or refute a complaint. Individuals offering testimony shall identify themselves and their connection to or interest in the complaint.

2. Documents

Any interested person may submit documents in support of, opposition to, or otherwise related to a complaint to the Committee Chair prior to or during the hearing. Documents submitted should bear a title and the name of the submitter and a brief statement of the submitter's connection with or interest in the complaint. Five copies of each document should be submitted.

3. Receipt of Evidence

When receiving evidence, the Committee will first receive evidence in support of the complaint followed by evidence in opposition to or otherwise related to the complaint. Documents submitted to the Committee shall be assigned numbers reflecting the order in which they were received.

4. Examination of Witnesses

a. The formal hearing(s) shall be conducted in accordance with the following procedure:

The Chair will preside over the hearings, but must allow the members their right to
b. question and raise points in the meeting.

c. The complaining party shall verbally present his/her arguments and then the defendant will do the same.

d. Following presentations of arguments, the Committee will hear the complaining party's
e. case. Then the defendant will present his/her case.

f. Following presentations of each party's case, evidence and testimony, and rebuttals will
g. be in order, alternating complaining party to defendant.

h. After all rebuttals have been heard, closing arguments will be in order. The complaining party will close first, followed by the defendant.

C. Remedies/Burden of Proof

a. After a complaint hearing, the Committee shall have the authority to order any remedy it

determines is appropriate within the limitations set forth in the Elections Code.

b. If the Elections Code specifies a remedy for a specific violation, the Committee shall only have authority to determine whether a violation has occurred and must impose the remedy stated in the Guild Elections Code.

c. No decision of the Committee shall take effect or shall become final until after the time in which to appeal has ended, or the Student Court upholds the decision.

d. The Committee shall not have authority to fine a student more than $500.00.

e. Any fines shall be donated to the Guild Welfare Fund.

Burden of Proof

a. The burden of proving a complaint alleging a violation of this Elections Code, Guild Constitution or other election irregularity shall lie with the party or parties making the complaint.

b. The level of proof required is a preponderance of the evidence, which shall mean that the evidence shows that it was more likely than not that a violation occurred.

c. If the Committee awards a remedy of disqualifying a candidate, invalidating an election, or fining a student, the level of proof required is clear and convincing evidence, which shall mean that the evidence leaves no substantial doubt as to the veracity of the claim.

D. Deliberations

1. Time and Place for Submitting a Decision

The Committee may conduct its deliberations in closed session. The Committee shall issue a separate written decision on each complaint no later than 5:00 p.m. of the tenth (10th) academic day after the final hearing of the complaint. Committee decisions shall be submitted to the Guild Council and the Guild Returning Office r shall make the decisions available to the public.

2. Contents of Decision

Each written decision of the Committee shall contain:

a. A statement of the complaint or complaints;

b. A summary of the testimonial and documentary evidence received at the hearing in support of the complaint;

c. A summary of the testimonial and documentary evidence received at the hearing in

opposition or rebuttal to the complaint;

d. A summary of witnesses' testimony;

e. A statement of the remedy requested;

f. A statement of the burden of proof the complaining party or parties was required to meet (either a preponderance of evidence or clear and convincing proof, depending on the type of relief requested);

g. A conclusion as to whether the complaining party or parties met the applicable burden of proof; this part of the decision shall include a brief summary of the reasoning supporting the Committee's conclusion;

h. A statement of the relief granted, if any, or a statement that relief is denied because of inadequate proof in support of the complaint or that the complaint is without merit.

E. Appeals

All decisions of the Committee may be appealed to the Student Court. No member of the Committee shall also serve as a member of the Student Court, other than the OSS Rep.

1. Time and Place for Filing an Appeal

All appeals from decisions of the Committee must be filed at a venue identified by the Electoral Complaint Committee no later than 4:00 p.m. on the third academic day after the Committee issues its written decision and the Guild Returning Officer has made that decision public.

2. Finality

All decisions of the Student Court are final and binding, and cannot be appealed.

[FINAL PAGE OF ELECTION CODE]

Approved by the vote of the
Guild of Students, Cave Hill
Campus **[September, 16, 2009].**